NUMALIGARH REFINERY LIMITED

A GOVERNMENT OF INDIA ENTERPRISE



(Domestic Open Tender)

TENDER DOCUMENT
FOR

Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)

[PUR-IHP-1011848]

Tender No: PUR1011848

Tender Type: Works Contract

Location of Execution: Numaligarh, Assam

Bidder's offer ref: _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ Dtd. _ _ _ _ _ _ _ _ _ _

PART–I: UNPRICED BID

PREPARED & ISSUED BY

NUMALIGARH REFINERY LIMITED
(A Govt. of India Enterprise)

NOTICE INVITING TENDER

Contact Persons for this tender:			
For Commercial Related Matters:		**For Technical Related Matters:**	
Name: Designation: E-mail ID: Mobile Number:	Dipu Kumar Bhatta Manager (Commercial) dipu.bhatta@nrl.co.in 9435150677	Name: Designation: E-mail ID: Mobile Number:	Devraj Sonowal SR. OFFICER (MECHANICAL) devraj.sonowal@nrl.co.in 6002934070

Our Reference: Tender No. **PUR1011848** **Date:** 10-06-2026

Tender document for the job:- Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)

Subject job is a works contract and is not covered under the Public Procurement policy for MSE and 'Start Up' bidders, including relaxation pertaining to 'average annual turnover' and 'past experience', are not applicable in this tender.

Dear Sirs,

Online offers in **Two Part Bid** is invited from competent and experienced domestic (Indian) bidders by Numaligarh Refinery Ltd. for the job as detailed below:

1.	**Earnest Money Deposit**	**Rs. 89,000.00** (Rupees Eighty-Nine Thousand only) *The EMD must be submitted online on the* ***portal of IndusInd bank*** *(instructions at* Annexure 14 below*) and its receipt must be uploaded along with the offer. If the EMD is not received along with the offer, the offer shall not be accepted.* *However, MSE bidders are exempted from submission of EMD. MSE bidders are required to upload a valid MSE registration certificate (as explained in Annexure 3), instead of the EMD deposit receipt, with the bid. Start-ups, as recognized by the Department for Promotion of Industry and Internal Trade (DPIIT) are also exempted from submission of EMD. Valid start-up certification in lieu of the EMD deposit receipt should be uploaded with the bid.* *In addition, such exempted bidders must submit a Bid Security Declaration as per format enclosed as Annexure 14.1 on Bidder's Letterhead in lieu of EMD.*	
2.	**Contract Period**	**12 Months** from the date of site handover. Contract Validity: 12 Months from date of PO/WO	
3.	**Place of submission of Bid**	Online in the e-tender portal i.e., http://eprocure.gov.in/eprocure/app Bids received by any other way of Post, Courier, Fax, Telex or Telegram or Email or in open condition etc. shall not be considered.	
4(a)	**Online Bid & EMD Submission:**	**Before 11.00 AM of 23.06.2026**	Please also keep a track of the tender portal / NRL website for any subsequent corrigendum / extension notice.
4(b)	**Bid Opening date & time**	**After 11.00 AM of 24.06.2026**	
5	**Bidder queries, if any / Site Visit:**	**Latest by 16.06.2026** Queries raised after the above date may not be entertained by NRL.	
	CLARIFICATION OF BIDDING DOCUMENT 1. Although the details presented in this Bidding document `consisting of Conditions of Contract, Scope of Work, Technical Specifications and Drawings which have been compiled with all reasonable care, it is the Bidder's responsibility to ensure that the information provided is adequate and clearly understood. 2. Clarification on bidding conditions: a) Bidder shall examine the Bidding document thoroughly in all respect and if any conflict, discrepancy, ambiguity, error or omission is observed, Bidder may request information/ clarification of the Bidding Document in writing through E-mail so as to reach office of NRL not later than 07 days prior to the last date for submission of bids mentioned above. (b) Where there is disqualification of bidder on non-meeting techno-commercial requirement, bidder may submit any representation within 48 hours from the date of uploading technical recommendation (TR).		

	NRL may respond in writing to any request for any information or clarification or query on the bidding conditions, bidding process and/or rejection of its bid - directly to the concerned bidder or by publishing in the e-tendering portal - depending on the nature & content of the information/clarification sought. 3. Any failure by the Bidder to comply with the aforesaid requirement shall not excuse the Bidder, after subsequent award of contract, from performing the work in accordance with the contract. 4. Bidders are requested to resolve all their clarifications/queries to the Bidding Document before submission of bid and submit their bid in total compliance to Bidding Document without any deviation /stipulation /clarification /assumption. 5. The responses to Bidder's queries/ clarifications raised will be furnished as expeditiously as possible in the form of Corrigendum/Addendum. Any modification of the Bidding Document, which may become necessary as a result of the bidders query, or for any reason at NRL's initiative, shall be published as a Corrigendum /Addendum which shall form a part of the Bidding document. Bidder shall submit a copy of all the Corrigendum/Addendum duly signed and stamped in token of his acceptance. Bidder shall consider its impact in his bid / submit revised bid within the last bid submission date & time. Bids submitted without all Corrigendum/Addendum are liable to be rejected. 6. The bidder (s) or his designated representative, who has downloaded the bid document, are invited to attend a **PRE-BID MEETING** (if applicable) as per the details given in the NIT. The purpose of the meeting will be to clarify issues and to answer queries on any matter that may be raised at that stage. Further, the minutes of the pre-bid meeting will form a part of the Tender, and the bidder needs to submit the same duly signed & sealed. 7. Bidder is also advised to visit and examine the site, its surroundings and familiarize himself with the existing facilities and environment and collect all other information which he may require for preparing and submitting the bid and entering into the Contract. Claims and objections due to ignorance of existing conditions or inadequacy of information will not be considered after submission of the Bid and during implementation. Any loss to the property /life of the visitor due to the visitor's negligence shall be the visitor's responsibility. Visitors shall keep NRL indemnified from any legal consequences arising there from.	
6	**Date & Time of Pre Bid Meeting / Venue / Contact persons**:	**Time & Date: At 11:00 AM of 16.06.2026** **Venue / Mode: Online** Join the meeting now **Meeting ID: 452 548 621 136 56** **Passcode: om6Tt6Zk** **Contact details: 6002934070** The minutes of "Pre-bid discussion" shall be uploaded in the tender portal and shall become a part of the bid/tender document. + any related information
7	**Submission of Bid:**	Bid documents should contain duly filled, signed / sealed / digitally signed copy of this NIT along with all requisite documents/certificates/declarations etc. The signatory of the bid documents should have valid Power of Attorney for signing the bid "or" should be the proprietor. **Copy of Power of Attorney "or" Proprietorship Certificate/Proof in the name of the signatory of the bid should be submitted with the bid/tender.** Refer to 'NOTE' below. Being an e-tender the bid has to submitted online in the e-tender portal i.e. http://eprocure.gov.in/eprocure/app. Kindly refer **"instructions" provided in the** NIT **Bid Document** for the detailed **Bid Submission** procedure. For any assistance w.r.t. the CPP portal, the following mail ID may be contacted: 9435710920 Email: z_tender@nrl.co.in
	NOTE: Power of Attorney to be issued by the bidder in favour of the authorised employee(s), for purpose of signing the documents including bid, all subsequent communications, agreements, documents etc. pertaining to the tender/tender(s) and to act and take any and all decision on behalf of the bidder. Any consequence resulting due to such signing shall be binding on the Bidder.	

	The Power of Attorney shall be issued as per the constitution of the bidder as follows: - a) In case of Proprietorship: by Proprietor. b) In case of Partnership: by all Partners or Managing Partner. c) In case of Limited Liability Partnership: by any bidder's employee authorized in terms of Deed of LLP. d) In case of Public / Limited Company: Power of Attorney in favour of authorized employee(s) by Board of Directors through Board Resolution or by the designated officer authorized by Board to do so. Such Board Resolution should be duly countersigned by Company Secretary / MD / CMD / CEO. The Power of Attorney should be valid till award of contract / order to successful Bidder.

8. **Scope of work and Supply**:

The scope of work & supply of this work will be in accordance with the Tender document, Special Conditions of Contract, Schedule of Rates, Any other Documents, Drawings, Specifications referred in the tender and as per the direction of Engineer-in-charge.

9. **Rates:**

Firm rates should be quoted in figures in the **Bill of Quantity (BOQ)** uploaded with this tender in excel format.

NOTE: Bidder shall quote price after careful analysis of cost involved for the performance of the work considering all parts of the Bidding Document. In case any activity though specifically not covered in description of item under `Schedule of Rate (SOR)' but is required to complete the work which could be reasonably implied/ inferred from the contents of the Bidding Document, the prices quoted shall be deemed to be inclusive of cost incurred for such activity.

The prices shall be based on conditions specified in General Conditions of Contract, Special Conditions of Contract (SCC), Scope of Work, Scope of Supply, Technical Specifications, Drawings and other contents of Bidding Document. Bidders are therefore advised to get themselves acclimatized with the site conditions before quoting.

The Tenderers/ Bidders are expected to quote after careful analysis of costs involved for the performance of the complete item/ works considering all specifications and conditions of contract. In case the quoted price is found to be lower than NRL's cost estimate post priced bid opening, NRL at its discretion, may ask the tenderer/bidder for the following undertaking/confirmation, including detailed price analysis from the tendered/bidder, to ensure understanding of the scope of work by the bidder and for considering the reasonableness and workability of their quote:-
(i) that they have read the tender terms and conditions and understood the scope of work completely;
(ii) that they shall execute the job at their offered price without any deviation to the tendered specification/requirement; and
(iii) that they shall be able to complete the job within the scheduled time.

Failure to provide unconditional confirmation to any or all of the above, within the stipulated timeline (generally 03 days, which may be extended at the request of the tenderer/bidder, at NRL's discretion and if situation warrants), shall be deemed as withdrawal of offer and necessary action under NRL's Holiday Listing Policy shall be initiated.

Variation of quoted rate(s)/price(s) shall NOT be allowed on any account after due date & time of submission of offer.

Prices quoted by the bidder, shall remain firm, fixed and valid till completion of the contract. However, in case of any revision of labour wages by NRL / Original Statutory Authority whose rates were referred in the NIT, NRL may enhance labour wage related rates, if applicable as per the relevant wage revision circular for that work location and as per conditions pre-defined in the tender document. NRL's decision w.r.t. any enhancement in labour wage related rates against a particular contract shall be final & binding.

If a firm quotes NIL charges/consideration, the bid shall be treated as unresponsive and will not be considered.

10. **Mode of tender evaluation:**

- Job shall be awarded on overall L1 basis and complete order shall be placed on a single agency.

- In case more than one agency becomes L1, then discount on the quoted price will be obtained from the L1 bidders in sealed envelopes (**only if the quoted L1 value is not deemed to be on lower side; or quoted rate/percentage is higher than minimum allowable/acceptable rate/percentage/price, if specified in the NIT**). The sealed envelopes will be opened in presence of the L1 bidders on a pre-determined date. The bidder offering the highest discount shall be considered as the successful bidder.

- Even after the above exercise, if more than one agency remains at L1 (**or the originally quoted L1 value is deemed to be on the lower side and any further discount is felt to lead to unworkable situation; or originally quoted L1**

rate/percentage is equal to minimum allowable/acceptable rate/percentage/price) then lottery will be conducted to determine the L1 position without asking for further/any discount.

It may also be decided that in case the L1 agency selected through lottery refuses or fails to execute the job, the job (or balance part of the job) may be subsequently offered to any of the other L1 agencies (not selected for award so far), adopting appropriate selection process by NRL like lottery among the remaining interested agencies.

- In case of "refusal", subsequent award to next eligible agency shall be done within original or extended offer validity.
- In case of "failure", unexecuted quantities shall be offered to the next eligible agency within maximum one year from the original date of award.

Defaulting supplier/contractor shall be subject to penalties as per procedure.

11. **Contract Performance Security (CPS)**: .

The successful bidder must submit Contract Performance Security (CPS) @ 3% of contract / annualized contract / annualized estimated contract value (refer GCC of NRL for details) **within 10 days** from the date of notification of the award (LOA).

Same may be deposited in the form of a BG in prescribed format (provided in Annexure 15.2) or an Insurance Surety Bond (ISB) in prescribed format (provided in Annexure 16.2) or through online transfer to the designated bank account of NRL. Detailed Work Order shall be issued/signed after receipt and verification of the requisite contract performance security. Non-submission of CPS within the provided timeline may lead to termination of award, holiday listing and forfeiture of EMD and other penal actions for breach of contract.

Please refer clause 3.15, 3.24 and 3.10 of the GCC for further details.

12. **Defect Liability Period:** The defect liability period shall be Applicable as per GCC from the date of completion of the work in all aspect.

12(B). **Security Deposit:** Applicable for this tender.

Security Deposit / Retention @ 7% of contract / annualized contract / annualized estimated contract value shall be withheld by NRL from each running bill, or alternatively, deposited by contractor in the form of a BG in prescribed format (provided in Annexure 15.3).

Please refer clause 4.6 and 4.12 of the GCC for further details.

13. **Measurement of work:** Payment will be made on the basis of joint measurements, taken by the contractor and certified by Engineer-in-charge.

14. **Terms of payment:**

85% Payment will be made through R/A bills against the certified measurement of the work done and balance 15% shall be made after successful testing, acceptance and completion of a piping system in totality.

Contractor/Supplier may submit Billing Schedule or further break-up of payment terms if deemed necessary within three weeks after placement of LOA/PO (whichever is issued earlier) for E-I-C's approval (wherever applicable). It shall be noted that such a request for break-up of payment terms shall not relieve any contractor / supplier from Liquidated Damages (LD) or Price Reduction Clause (PRC).

The above payments are subject to deductions towards security deposit, income tax and other recoveries as applicable as per terms of the contract.

An amount equivalent to the extent of eligible Input Tax Credit (ITC) available to NRL on each invoice shall be released only upon reflection of corresponding invoice and Input Tax Credit details in GSTR-2B report relating to NRL in GST portal. In other words, GST component eligible for Input Tax Credit, of any invoice shall be withheld till such time same is reflected in GSTR-2B.

Govt. has reduced the aggregate turnover for applicability of E-invoices from earlier limit Rs.20 crores to Rs.10 crores, effective from 1st Oct'2022. Govt. has further reduced the threshold aggregate turnover for applicability of E-invoicing to Rs.5 Crores from 1st August 2023 onwards. In view above, all concerns are requested to raise only E-invoice to NRL with all requisite details like IRN, QR code etc. Non-compliant invoices shall not be accepted for further processing.

For payment administration or issues related to clearance of Tax Invoices, contractors/suppliers may send their request / query etc. to the e-mail ID: livdesk@nrl.co.in

15. **Price, Taxes, Duties:**

Without prejudice to stipulations in General Conditions of Contract, the bidder should quote firm prices including all taxes. It is for the Bidder to assess and ascertain the rate of above taxes & duties applicable on quoted items. It is clearly understood that Owner will not have any additional liability towards payment of above taxes & duties which are based on Bidder's wrong assessment / interpretation of applicability of said taxes & duties.

However, GST as applicable will be loaded extra by NRL on the quoted value.

The Bidder shall quote in Indian Rupees and shall be paid in Indian Rupees only.

If there is delay beyond contractual completion period for reasons attributable to Contractor, any increase in taxes & duties will be borne by the Contractor and any decrease shall be passed on to Owner.

The prices charged by the supplier/contractor should not exceed the prevailing rates charged by him from others for similar services.

16. **Penalty Clause**:

In case the contractor fails to comply with provisions of tender requirement, penalty (monetary or otherwise) as deemed fit by the Engineer-In-Charge (E-I-C) will be levied as per the provisions in NRL GCC and provisions of the tender and the same shall be final and binding on the contractor.

17. **Other terms and conditions**:

(a) Transfer of tender documents issued to one short-listed bidder to another is not permissible. Further, tender containing uncalled for remarks or any additional conditions are liable to be rejected.

(b) The management of NRL reserves the right to reject any or all the tenders received without assigning any reason thereof.

(c) Variation in the value of the work will not vitiate the contract.

(d) The contractor will have to abide by the existing laws applicable to contract works and co-operate with other contractors working at site and will not cause hindrance to other works.

(e) The contractor shall observe all labour and other statutory rules and regulation of State/Central Govt. in force including the Safety and Environmental rules & regulations. In case of any violations of such laws, rules & regulations, the cost involvement thereof shall exclusively be borne by the contractor and the company shall have no liability whatsoever on this account.

(f) The contractor should engage skilled and unskilled labourers preferably from the families of displaced persons to the extent available.

(g) **Jayanta Das, Chief Manager PIH, NRL Site, Numaligarh** shall be the Engineer-in-charge of the work and the contractor will have to abide by the instructions of Engineer-in-charge as given from time to time.

(h) **Tenderer will fill up the all annexure attached to this Detailed Tender Notice clearly and sign every page of this Detailed Tender Notice (or digitally sign the filled-in bid document file) before submission of the tender. All requisite supporting documents should be enclosed. Tenders in which any of the required particulars and prescribed information are missing or are incomplete, are liable to be rejected.**

(i) No mobilization advance will be paid to the contractor for execution of this work.

(j) Contractors / suppliers and their concerned persons / workmen engaged for execution of works / services / deliveries / installation / commissioning / testing or any other activity in various operational and non-operational work areas must adhere to the "Personal Protective Equipment (PPE) Policy and Guidelines of NRL". The Personal Protective Equipment (PPE) Policy and Guidelines of NRL is available in NRL Website www.nrl.co.in → Tenders → Download Manuals → **Personal Protective Equipment (PPE) Policy and Guidelines of NRL (Rev-01; 08-10-2024)**.

(k) The contractors will make necessary deductions for PF from the wages of the workers as per the PF Act and deposit the same to the authorities concerned along with the employers' contribution.

(l) Insurance shall be effected for all employees of the contractor, engaged in the performance of the subject job. (Refer clause 7.2 of GCC).

(m) **The contractor is required to obtain** labour license under Contract Labour (R&A) Act, 1970 & **PF registration number on awarding the contract**, wherever applicable. (Refer clause 8 of GCC).

It may be noted that labour license is required from the contractor only when there is requirement for deployment of 20 (twenty) or more workers or where there is possibility of increase in number of workers to twenty or more during the contract period.

(n) The contractor will not engage minor labour below 18 (eighteen) years of age under any circumstances. The contractor will further comply with the provisions of the following act and indemnify the company against all claims, which may arise out of the following Acts, & Rules framed there-under:

(i) The Contract Labour (Regulation and Abolition) Act,
(ii) The Minimum Wages Act.
(iii) The contractor has to accept full & exclusive liability for compliance with all obligations imposed by **Employee State Insurance Act, 1948.**
(iv) The Payment of Wages Act,
(v) The Payment of Bonus Act,
(vi) The Employees Provident Fund & Misc. Provisions Act,
(vii) Family Pension Scheme,
(viii) Inter State Migrant Workmen (Regulation of Employment & Condition of Service) Act, or any other acts or statute not hereinabove specifically mentioned having bearing over engagement of workers directly or indirectly for execution of work.

Provident Fund

a) PF to be deposited against each worker engaged by the contractor. The worker should have valid gate pass against the particular contract. Contractor has to maintain one register for PF.

b) Contractor has to submit monthly return (ECR) and acknowledgement receipt of the PF deposits along with the bill.

c) Actual calculated PF amount will be withheld from RA bill in case of non submission of the above document.

ESI Fund

a) ESI to be deposited against each worker engaged by the contractor .The worker should have valid gate pass against the particular contract. Contractor has to maintain one register for ESI.

b) Contractor has to submit monthly return and acknowledgement receipt of the ESI deposits along with the bill.

c) Actual calculated ESI amount will be withheld from RA bill in case of non submission of the above document

(o) Planning and Designing in purview of Vulnerability Atlas of India

Vulnerability Atlas of India (VAI) is comprehensive document which provides existing hazard scenario for the entire country and presents the digitized State/UT- wise hazard, maps with respect to earthquakes, winds and floods for district-wise identification of vulnerable areas. It also includes additional digitized maps for thunderstorms, cyclone and landslides. The main purpose of this Atlas is its use for disaster preparedness and mitigation at policy planning and project formulation stage.

This Atlas is one of its kind single point source for the various stakeholders including policy makers, administration, municipal commissioners, urban managers, engineers, architects, planners, public etc. to ascertain proneness of any city/location/site to multi-hazard which includes earthquakes, wind, floods thunderstorms, cyclones and landslides. While project formulation, approvals and implementation of various urban housing, buildings and infrastructures schemes, this Atlas provides necessary information for risk analysis and hazard assessment.
The vulnerability Atlas of India has been prepared by Building Materials and Technology Promotion Council under Ministry of Housing and Urban Affairs, Government of India and available at their website www.bmtpc.org .

It is mandatory for the bidders to refer Vulnerability Atlas of India for multi-hazard risk assessment and include the relevant hazard proneness specific to project location while planning and designing the project in terms of:

i) Seismic zone (II to V) for earthquakes,
ii) Wind velocity (Basic Wind Velocity: 55, 50, 47, 44, 39 & 33 m/s)
iii) Area liable to floods and Probable max. surge height
iv) Thunderstorms history
v) Number of cyclonic storms/ severe cyclonic storms and max sustained wind specific to coastal region
vi) Landslides incidences with Annual rainfall normal
vii) District wise Probable Max. Precipitation

(p) **Contractors' Performance Evaluation:** NRL has adopted a dynamic performance monitoring /evaluation procedure for continuous monitoring and evaluation of contractors, to maintain their accountability and performance. A rating, based on performance shall be assigned for each work executed by a contractor. This rating shall be used in determining eligibility of the bidder in subsequent tenders issued by NRL (or by NRL authorized agencies / PMC / EPCM).

Following are the areas to be covered under continuous evaluation process:

1. Compliance of safety and housekeeping at worksite
2. Resource mobilization/delay in completion
3. Quality of works and documentation
4. Compliance of statutory / regulatory guidelines

Contractor whose performance is evaluated as Unsatisfactory based on pre-defined scoring criteria shall be debarred for 1 year from participating in NRL's tenders from the date of issuing notification by NRL.

Detailed Contractors' Performance Evaluation methodology is available in NRL Website www.nrl.co.in → Tenders → Download Manuals → Contractors' Performance Evaluation Procedure

Performance evaluation shall be applicable for the contract(s) to be awarded under this tender.

(q) **Recovery rate of materials issued to contractor on chargeable basis:** Generally in NRL contracts, scope of supply of all materials, tools & tackles, equipment, machineries and labour is entirely kept under the contactor. However, in the interest of expediting the work NRL may supply cement and reinforcement bars to the contractor on chargeable basis on their request and subject to availability at NRL. In such case the contractor has to lift the materials from NRL's warehouse in Refinery premises and transport to the worksite at his own cost.

Wherever materials are issued to contractor on chargeable basis, NRL shall recover the landed cost of the materials (as per rates of latest executed NRL PO, at the time of issuance of materials) plus 15% overhead and applicable GST from contractors RA bills or any other dues.

(r) **Gate Pass System:** "Saral Pravesh" is a platform developed by Numaligarh Refinery Ltd. for applying & issuing of smart card-based Photo Gate Pass required for entering Numaligarh Refinery premises. This is a web based application and web link is available on NRL web site (https://www.nrl.co.in/) under "Day to Day Applications" (Link: https://www.nrl.co.in/icwcs/). Any contractor, consultants, service provider, vendor who is required to deploy their employees, executives, workers, experts etc. at Numaligarh Refinery premises for execution of any work or training shall register in the "Saral Pravesh" system and apply for gate passes through this platform. Respective EICs may be contacted for further details after issuance of LOA / Work Order.

(s) **Trade Receivables Discounting System (TReDS):** Interested bidders are requested to on-board their firm in the TReDS platform and may communicate to NRL in order to avail the facilities that the portal provides.

(t) **Breach of Contract, Remedies and Termination:**

1. Breach of Contract

In case the contractor is unable to honour important stipulations of the contract, or gives notice of his intention of not honouring or his inability to honour such a stipulation, a breach of contract is said to have occurred. Mostly, such breaches occur in relation to the performance of the contract in terms of inability to complete the Work within stipulated time. It could also be due to breach of ethical standards or any other stipulation that affects Procuring Entity seriously. As soon as a breach of contract is noticed, a show cause notice shall be issued to the contractor, giving applicable notice period, reserving the right to implement contractual remedies. If there is an unsatisfactory resolution, remedial action may be taken immediately.

If termination takes place because of a fundamental breach/ insolvency on the part of the contractor, the EIC shall issue a certificate for the value of work done, deducting from the amounts in respect of: (i) advance payments; (ii) any recoveries; (iii) taxes as due; and (iv) percentage to apply to the work not completed as indicated in the contract data. If the total amount due to the procuring entity exceeds that due to the contractor, the difference will be a debt payable to the procuring entity. A contract may be terminated in the following cases and written communication on termination of contract should be conveyed to the contractor from Commercial Department. The Procuring Entity is then free to take over the site and complete the works himself or with another contractor and use the contractor's materials, equipment, temporary works as he/ they think proper.

2. Cancellation of Contract for Default

Without prejudice to any other remedy for breach of contract, by written notice of default sent to the Contractor, the contract may be terminated in whole or in part, if the contractor:

i) has seriously or repeatedly breached the contract, including
   a) failure to complete the work within the time period(s) specified in the contract, or any extension thereof granted;
   b) failure to obey instructions in relation to his progress or defective work, material or plant;
   c) breach of the prohibition against sub-contracting
   d) Failure to supply sufficient and suitable constructional plant, temporary works, labour and material as proposed in the work programme;
   e) Substantial suspension of work for more than the specified days without authority from the engineer and failure to proceed with the work within the specified days of receipt of notice from the engineer
   f) Failure to comply with the requirements regarding JVs

ii) committed fraud

iii) If the contractor fails to perform any other obligation under the contract within the period specified in the contract or any extension thereof granted.

iv) If the contract is terminated in whole or in part, recourse may be taken to any one or more of the following actions:
   a) Forfeiture of the security deposit;
   b) Upon such terms and in such manner as it deems appropriate, taking over the site and to complete the works himself or with another contractor (risk Purchase) and use the contractor's materials, equipment, temporary works as he/ they think proper; and
   c) However, the contractor shall continue to fulfil the contract to the extent not terminated.

3. Termination of Contract for Insolvency

If the contractor becomes bankrupt or becomes otherwise insolvent or undergoes liquidation or loses substantially the technical or financial capability (based on which he was selected for award of contract), at any time, the contract may be terminated, by giving a written notice to the contractor, without compensation to the contractor, provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to Procuring Entity.

4. Termination of Contract for Procuring Entity's Failure or Convenience

After placement of the contract, there may be an unforeseen situation compelling Procuring Entity to cancel the contract. In such a case, a suitable notice has to be sent to the contractor for cancellation of the contract, in whole or in part, for its (Procuring Entity's) convenience, inter alia, indicating the date with effect from which the termination will become effective. This is not Procuring Entity's legal right- the contractor has to acquiesce. Depending on the merits of the case, the contractor may have to be suitably compensated on mutually agreed terms for terminating the contract. If termination occurs because of Procuring Entity's convenience or a fundamental breach on his part, the engineer will certify the value of works executed, value of any materials lying at site, reasonable cost of removal of equipment, repatriation of project staff, cost of protecting and securing the works and deducting from it: (i) pending advances; (ii) other recoveries; and (iii) taxes as due.

The bidders are advised to submit valid IT PAN No, GST registration Certificate, PF & ESI registration Certificate with their offer.

For CGM (Commercial)
Numaligarh Refinery Limited
Dipu Kumar Bhatta/ Manager (Commercial)

"All Business Partners are requested to register in GeM through their Local (State) Business Facilitator following the link mentioned as below:-

https://gem.gov.in/training/facilitators”

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)

NRL Tender No. : PUR1011848

PRE-QUALIFICATION CRITERIA (PQC)

Subject job is a works contract and is not covered under the Public Procurement policy for MSE and 'Start Up' bidders, including relaxation pertaining to 'average annual turnover' and 'past experience', are not applicable in this tender..

PRE-QUALIFICATION CRITERIA (PQC)

The intending bidders for above tender should meet all the qualification criteria given below:

A) Past Experience of having **successfully completed** similar works* during last 10 years ending last day of month previous to the one in which the original bid due date falls, should be either of the following:

- **One** similar work costing not less than **Rs.22.19 Lakhs**, or
- **Two** similar works costing not less than **Rs.17.75 Lakhs each**, or
- **Three** similar works costing not less than **Rs.13.32 Lakhs each**.

***Similar Works:**

The intending bidders should meet the qualification criteria given below:
Past Experience of having successfully completed similar works* during last 10 years.
*Similar Works:

- Bidder must have experience of executing mechanical nature of works involving CS / SS / Alloy steel piping, fabrication and erection work in any hydrocarbon/petroleum marketing Terminal/petrochemical industries.
- As proof of experience bidder shall provide copy of work order(s)/ LOA, SOR & and completion certificate along with the bid.
- For accepting experience under private organization, in addition to requisite certificates (letter of award of contract / work order, SOR and completion certificate) TDS certificate issued by private organization shall be furnished.

Note: Non-fulfilment of the above-mentioned pre-qualifying criteria will lead to disqualification of the bid.

NOTE:

1) Relevant work order copies and corresponding completion certificates are to be enclosed with offer. The completion certificate should consist of Name of Work, Work Order number & date, Actual executed value and Actual completion date. The date of completion of works as per the Completion Certificate will be considered for determining acceptability in respect of the qualifying past experience period as specified above.

In case of non-availability of completion certificate against each work order in the above format, the supplementary information may be submitted in the form of supporting document(s) issued by the same authority/office issuing the completion certificate.

2) The value of past experience shall be adjusted at a simple rate of 07% for every completed year and / or part thereof ending last day of the month proceeding the month in which the original bid due date falls. The values specified above are executed values, exclusive of GST / Service tax.

3) Unless otherwise specifically mentioned in the tender, Completion Certificate issued against incomplete / in-progress job will not be acceptable. However, successfully completed jobs of regular/repetitive nature, which are under extension for additional period, may also be accepted if Completion Certificate against the completed original contractual period (or completed extension extended) with corresponding executed value and date of completion is furnished. However, executed value pertaining to the ongoing extension period shall not be considered. [For example, if a contract is for 2+1 years, and the original 2 years or 2+1 years is completed but contract is still under extension for provisional (+1 year) / any further additional period, the certified value for only the completed 2 years or 2+1 years will be considered. However, in the same example, any Interim Work Completion Certificate for a part of the original contractual period of 2 years will not be considered]. Similarly, and unless otherwise specifically mentioned in the tender, for one-time projects where the project is successfully completed/commissioned but warranty/AMC etc. is ongoing may also be accepted if Completion Certificate against the project with corresponding executed value and date of completion is furnished.

B) AVERAGE ANNUAL TURNOVER, of the last 3 (three) financial years, shall be at least Rs.13.32 Lakhs.

Bidders to submit copies of audited profit & loss account for the last three financial years in support of annual turnovers "or" certification of annual turnovers for the last three financial years from a registered chartered accountant firm. Last three financial years mentioned above refers to immediate three preceding financial years wherever the original last bid submission date is after

31st December. In case of tenders having original last bid submission date up to 31st December and audited / CA certified turnover documents of the preceding financial year is not available, the audited / CA certified turnover documents of the three years prior to preceding financial year will be considered. [May refer illustrative example given at Annexure 2.2]

Note:- The average annual turnover is calculated by adding the turnovers of 03 the specified years, divided by 03. If a Bidder does not submit the aforementioned financial statements for three specified years, then Average Annual Turnover will be calculated based on financial figures of only those specified years for which requisite financial statements are submitted. Turnover will be considered '0' (Zero) for the year(s) for which requisite financial statements are not submitted.

Audited Annual Report / financial statements needs to be accompanied with UDIN number, which is mandatory from July 2019 onwards. Any Financial Report which is issued after July 2019 onwards without UDIN shall not be considered for evaluation.

****

IMPORTANT NOTE TO BIDDERS:

a) Notwithstanding any other condition / provision in the tender documents, bidders are required to submit complete documents pertaining to Pre-Qualification Criteria (PQC) along with their Bid. Evaluation may be completed based on the content of the Bid itself without seeking any subsequent additional information, which may result in rejection of Bid.

NRL at its discretion, may request bidder in writing, to submit the necessary information or documentation, within a reasonable period of time, to withdraw deviation, reservation, or rectify omission in the bid related to documentation requirements. If the tenderer does not comply or respond by the specified date, his tender will be liable to be rejected. No change in prices or substance of the bid shall be sought, offered or permitted. No post-bid clarification at the initiative of the bidder shall be entertained. If sought, the bidders can submit only the shortfall information/documents which pre-existed at the time of the tender opening and which have not undergone change since then.

So far as the submission of documents w.r.t. Pre-Qualification Criteria (PQC), after opening of the tenders is concerned, only related shortfall documents may be asked for and considered by NRL [For example, if the bidder has submitted a contract without its completion certificate, the certificate can be asked for and considered. However, no other contract (which was not enclosed or referred in their original Bid), shall be asked for so as to qualify the bidder]. That is, the bidder shall not be allowed to submit new references or documents w.r.t. PQC, which were neither enclosed nor referred to in their original Bid.

If the bidder cites any reference of a job executed for NRL in their original Bid and the bidder is not able to furnish documentary evidence, the internal records of NRL shall be considered.

b) It is to be noted that experience as main contractor will only be taken cognizance of for the purpose of assessing qualifying criteria. However, authorized sub-contractors under principal contractors can also be considered provided their works completion certificate is issued by the client organization in case of job executed elsewhere under PSUs, Limited Companies, Government Departments, Quasi Government and Autonomous Bodies. However, in case of sub-contractors under contractors engaged by NRL, the works completion certificate issued by the main contractor will also be acceptable provided the same is endorsed by Engineer-in-charge of NRL.

In support of the experience and value of work executed, the sub-contractors or contractors under private organizations, shall furnish either (i) TDS Certificate in Form 26AS (Annual Tax Statement under Section 203AA of the Income Tax Act, 1961) or (ii) Bank Certificate indicating receipt of payment from the Main Contractor or Private Organization(s) in case of overseas executions / executions under overseas organizations. This will be in addition to the copies of the relevant work order / letter of award and corresponding completion certificate(s).

c) Consortium/Joint venture bids are not acceptable.

d) NRL adopts a practice to verify documents submitted by L1 (successful) bidder in support of bidders credential against PQC. Authentication may be verified with the issuing authorities, by way of direct communication to NRL over official e-mail IDs / original letter of authentication by post. Bidders may also follow up with the issuing authority for eliciting early response. If documents remain unauthenticated till given time line, NRL reserves the right to reject the bid. Proper address for communication, including e-mail ID of the issuing authority should be provided along the tender document.

***e) Disqualification**: Even if an applicant meets the eligibility criteria and PQC, he shall be subject to disqualification if he (or any of the constituent partners in case of JV / Consortium / LLP) is found to have:*

1. *Made misleading or false representations in the forms, statements, affidavits and attachments submitted in proof of the qualification requirements; and/ or;*
2. *On account of currency of debarment by NRL / MoPNG.*

*f) **Contentions and Disputes**: The PQC shall be interpreted on common usage of terminologies and phrases in this tender instead of legalistic and hair-splitting judgements and NRL's decision in this regard would be final. Hair-splitting, contentious or viciously legalistic interpretations of PQC criteria, disregarding the very rationale of the PQC shall not be entertained.*

g) "In a tender, either the agent on behalf of the Principal/OEM or Principal/OEM itself can bid but both cannot bid simultaneously for the same item/product in the same tender." For this tender, in case offers are submitted by manufacturers (OEM/ Principals) directly, the offers corresponding of dealers shall be rejected without any further communication.

***h) Possession of Valid GST registration certificate**: **Unless exempted from GST registration, bidders are requested to upload their VALID GSTIN / UIN Certificate / GSTIN Number along with the Bid Document. NRL at its discretion may not consider the bidder's bid for further evaluation if the same is not found uploaded with the bid or not found to be valid in GST portal which may lead to rejection of the bid.** Any misinterpretation or misinformation may attract penal action including putting the bidder on holiday / blacklisting as per rules in vogue at NRL.*

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Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

BID REJECTION CRITERIA

Notwithstanding the above, deviation to the following clauses of Tender Document (and subsequent corrigendum/addendum, if any) shall lead to summarily rejection of Bid:

a) Firm Price (Wherever applicable)
b) Earnest Money Deposit (Bid Security) / Bid Security Declaration / Proof of Exemption (As applicable)
c) Specifications & Scope of Work
d) Schedule of Rates / Price Schedule / Price Basis
e) Duration/Period of Contract / Completion schedule
f) Period of Validity of Bid
g) Price Reduction Schedule / Liquidated Damages
h) Contract Performance Security (Wherever applicable)
i) Warranty / Guarantee / Defect Liability Clauses and Security Deposit, if applicable (Wherever applicable)
j) Clause on Settlement of Disputes – Arbitration / Mediation / Jurisdiction of Court (Unless agreed by NRL at the tendering stage itself)
k) Force Majeure & Applicable Laws
l) Integrity Pact, if Applicable
m) Any other condition(s) specifically mentioned in the Tender Document elsewhere, that non-compliance of the clause will lead to rejection of Bid.

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Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

AGREED TERMS & CONDITIONS (ATC)

DULY FILLED, SIGNED & STAMPED COPY OF THIS PRE-FILLED "QUESTIONNAIRE" SHALL BE ENCLOSED WITH BIDDER'S UNPRICED BID WITHOUT ANY DEVIATIONS. SUBMITTING INCOMPLETE REPLIES MAY LEAD TO REJECTION OF BIDDER'S QUOTATION".

SN	DESCRIPTION	BIDDER'S CONFIRMATION
A	**SCOPE OF WORK AND SUPPLY:** The scope of work & supply of this work will be in accordance with the Tender document, Special Conditions of Contract, Schedule of Rates, Any other Documents, Drawings, Specifications referred in the tender and as per the direction of Engineer-in-charge.	Noted & Confirmed
B	**RATES:** Rates should be quoted in line with clause 9 above	Noted & Confirmed
C	**EVALUATION OF TENDER:** Bids shall be evaluated as per clause 10 above	Noted & Confirmed
D	**CONTRACT PERFORMANCE SECURITY (CPS)**: Successful bidders shall be required to furnish CPS in line with clause 11 above	Noted & Confirmed
E	**DEFECT LIABILITY PERIOD:** Bids shall be evaluated as per clause 12 above	Noted & Confirmed
F	**SECURITY DEPOSIT**: Successful bidders shall be required to furnish security deposit in line with clause 12(B) above	Noted & Confirmed
G	**MEASUREMENT OF WORK:** Measurements shall be as per clause 13 above and as per SCC below	Noted & Confirmed
H	**PAYMENT TERMS:** Payments shall be made as per clause 14 above and as per SCC below	Noted & Confirmed
I	**PRICE, TAXES, DUTIES:** Shall be as per clause 15 above	Noted & Confirmed
J	**PENALTY CLAUSE:** Shall be as per clause 16 above and NRL's General Conditions of Contract (GCC)	Noted & Confirmed
K	**GST RATE:** Please mention applicable GST rate (in terms of %) for the tendered job	_____
L	**SAC CODE:** Please mention applicable SAC code for the tendered items	_____
M	**COMPENSATION FOR DELAY (LIQUIDATED DAMAGES):** The time allowed for carrying out the work as entered into the tender shall be strictly observed by the contractor. The work shall throughout the stipulated period of the contract be proceeded with all diligence. In case of delay, attributable to the contractor, penalty / LD shall be applicable under the provisions of the contract / NRL's General Conditions of Contract (GCC)	Noted & Confirmed
N	**COMPLIANCE TO BID REQUIREMENTS:** We confirm that our bid complies to the total techno-commercial requirements of the bidding document without any deviation.	Noted & Confirmed
O	**BID VALIDITY:** We hereby undertake that our bid for the above stated work against Tender shall remain valid for a period of **6 (six) months** from the date of bid opening.	Noted & Confirmed
P	**FIRMNESS OF PRICES:** Quoted prices shall remain firm and fixed till complete execution of the job, unless any variation/escalation is specifically mentioned in the tender document.	Noted & Confirmed
Q	**NON-DEBARMENT:** Bidders who are serving holiday listing/blacklisting/debarment orders by NRL or MoPNG will not be considered for evaluation. Accordingly, the bidder shall submit a self-declaration as per format in **Annexure 8** on Bidder Company Letter Head. It may be noted that if this declaration is found to be false, NRL shall have the right to reject the bidder's offer and if the bid has resulted in a contract, the contract is liable to be terminated.	Confirmed & Submitted

R	**POLICIES IN WEBSITE:** I have read the following documents available on the NRL website (links of which are given below) and hereby confirm my understanding and acceptance of the same. • Links: Holiday Listing Policy (w.e.f. 26.05.2025) nrl.co.in > Tenders > Download Manuals > Holiday Listing Policy (w.e.f. 26.05.2025) • Links: General Conditions of Contracts w.e.f. 09.09.2024 nrl.co.in > Tenders > Download Manuals > General Conditions of Contracts w.e.f. 09.09.2024 • Links: Contractors' Performance Evaluation Procedure w.e.f. 01.08.2021 nrl.co.in > Tenders > Download Manuals > Contractors' Performance Evaluation Procedure • Links: Circular of Wages for Contract Workmen w.e.f 01.01.2024 for the Refinery nrl.co.in > Tenders > Download Manuals > Circular of Wages for Contract Workmen w.e.f. 01.01.2024 for the Refinery	Noted & Confirmed
S	**Bid Security Declaration** *(for EMD exempted bidders):* Bidders must submit a **Bid Security Declaration** as per format enclosed as **Annexure-14.1** on Bidder's Letterhead in lieu of Earnest Money Deposit (EMD). This declaration must be submitted by only those bidders WHO ARE ELIGIBLE for any exemption from EMD that may be applicable (as per stated policy).	Noted & Confirmed
T	**PRICE BID UNDERTAKING:** 1. I have submitted the Priced Bid for the above mentioned work and related activities as envisaged in the Bid document. 2. I have thoroughly examined and understood all the terms and conditions as contained in the Bid document and agree to abide by them. 3. I offer to work at the rates indicated in the price Bid, inclusive of all applicable taxes except GST.	Confirmed & Submitted
U	All other terms and conditions shall be as per NRL's 'General Condition of Contracts'.	Noted & Confirmed

SIGNATURE OF AUTHORISED SIGNATORY: _____

NAME OF AUTHORISED SIGNATORY WITH DESIGNATION: _____

NAME OF BIDDING FIRM /COMPANY/AGENCY: _____

COMPANY SEAL : _____

DATE : _____

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

LIST OF ANNEXURES

Number	Short Description
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Annexure 2	Bidder details
Annexure 2.1	Past Track record/Experience details (PTR)
Annexure 2.2	Annual turnover in last 3 years
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ANNEXURES NOT APPLICABLE FOR THIS TENDER

Number	Short Description
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Annexure 3.2	*Format: Undertaking and reference of being Manufacturer*
Annexure 4	*Policy for Purchase Preference linked with Local Content (PP-LC) under Make in India (PPP-MII)*
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	LC Policy
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Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 1

Instructions To Bidders In Brief

Instructions to bidders for preparation, supporting documentation and tender submission etc. related to this tender are provided in respective sections of the tender and its related documents. Following sections of the tender are relevant w.r.t. specific requirements of the tender.

1) NIT – The "Notice Inviting Tenders" section including correspondence / contact details related to the tender.
2) PQC – The "Pre-Qualification Criteria" section.
3) BRC – The "Bid Rejection Criteria" section.
4) ATC – The "Agreed Terms & Conditions" section to be filled and submitted by bidders.
5) SCC- The "Special Conditions of Contract" section.
6) Annexures – Various Annexures to be filled and submitted by bidders, including an Annexure on checklist for submission of bids.
7) SOR / BOQ – Schedule of Rates or Bill of Quantity section.

Name of Bidder

(Signature of the authorized signatory of bidder with stamp and date)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 1.1

Checklist For Submission Of Bids

Following documents should be submitted with bids. Bidders are requested to fill this checklist and also to ensure that the applicable details/ documents as mentioned below have been furnished.

Please tick (√) the box for the documents to be enclosed with the bid.

1. Power of Attorney "or" Proprietorship Certificate/Proof in the name of the signatory of the bid.	
2. Earnest Money Deposit (EMD) / MSE Certificate, as applicable.	
3. Full set of the tender document with every page duly filled, sealed & signed.	
4. Copy(ies) of work order(s) and corresponding completion certificate(s) or any other relevant documents in support of past experience(s) to clearly meet the PQC.	
5. Copy of Audited Trading and profit & loss accounts or certificate from CA as proof of turnover to meet the PQC.	
6. Other certificates/license/proof as stipulated in the PQC requirements (if any)	
7. Copy of VALID GST Registration Certificate / Number	
8. Copy of PAN Card	
9. Copy of PF Registration Certificate	
10. Copy of ESI Registration Certificate	
11. Category of MSE registration (UDYAM registration certificate to be submitted) – if applicable	
12. Any other certificates, licenses, etc. as sought in the PQC or SCC (if any)	
13. Following documents in your letterhead duly signed sealed by authorized signatory: - a) Compliance to Tender (Annexure 11), b) GST Indemnity Bond cum Undertaking (Annexure 10) c) Certificate of Compliance to policy regarding sharing of land border with India (Annexure 6.1) d) Declaration of non-applicability of DMISP Policy (Annexure 5.2)	
14. Integrity Pact Document duly signed & sealed (if applicable)	

Bidder should list the exclusion, if any, along with the reasons thereof. *NRL may treat a bid as incomplete if it is not accompanied by above documents and reject such bid without providing any opportunity to the bidder to submit shortfall documents.*

Name of Bidder

(Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 2

Bidder Details

Name of the Bidder	
Address- Registered Office *(& website, if available)*	 PIN:
Address- Place of business (Office from where GST invoice will be raised if different from above)	 PIN:
Contact Person for bid	Name & designation: Email ID: Mobile:
Nature of Business	
Constitution / Legal status	*(Prop. / Co./PSU/Govt etc.)*
NRL Vendor Code	*(if available)*
PAN	*(mandatory #)*
GSTN	*(if registered #)*
CIN	*(if available #)*
PF regn.	*(if registered #)*
ESIC regn.	*(if registered #)*
BANK A/C & IFSC	*(##)*
UDYAM (MSME)	No. : *(if available #)* Micro ☐ / Small ☐ / Medium ☐ Service ☐ / Manufacturing ☐ / Trading ☐
Authorised Signatory / Attorney	Name & designation: Date: Place : **(SIGNATURE)**

Attach copy
Attach cancelled cheque copy

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)

NRL Tender No. : PUR1011848

Annexure 2.1

Past Track Record (PTR)/Experience details

Details of POs Submitted						Job Completion Certificate	
S.No	**PO No.**	**PO Date**	**Issuing Organization**	**Value of contract in INR**	**% Similarity**	**Completion Date**	**Executed Value in INR**

Note: If only a part of an order is meeting the requirement of "Similar Works" in "Past track record", please mention the respective PO item serial numbers in a separate annexure. If the PO completely matches the similar item description in PTR, keep the space blank or mention 100%.

Name of Bidder (Signature of the authorised signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 2.2

Average Annual Turnover Of Last Three Financial Years

Sl. No	Financial Year	Turnover	UDIN*
1			
2			
3			
Average Annual Turnover:			

* UDIN: **Unique Document Identification Number** for verification of authenticity of the CA certified Details at https://udin.icai.org/search-udin.

Bidders to submit copies of audited profit & loss account for the last three financial years in support of annual turnovers "or" certification of annual turnovers for the last three financial years from a registered chartered accountant firm. The last three financial years mentioned above refers to immediate three preceding financial years wherever the original last bid submission date is after 31st December. In case of tenders having original last bid submission date up to 31st December and audited / CA certified turnover documents of the preceding financial year is not available, the audited / CA certified turnover documents of the three years prior to preceding financial year will be considered.

Note: - The average annual turnover is calculated by adding the turnovers of 03 the specified years, divided by 03. If a Bidder does not submit the aforementioned financial statements for three specified years, then Average Annual Turnover will be calculated based on financial figures of only those specified years for which requisite financial statements are submitted. Turnover will be considered '0' (Zero) for the year(s) for which requisite financial statements are not submitted.

Audited Annual Report / financial statements needs to be accompanied with UDIN number, which is mandatory from July 2019 onwards. Any Financial Report which is issued after July 2019 onwards without UDIN shall not be considered for evaluation.

ILLUSTRATIVE EXAMPLE:-

- *If the due date for submission of bid is up to 31.12.2022; **Say 31.12.2022 or before** you may submit turnover documents for **19-20, 20-21, 21-22** "OR" **18-19, 19-20, 20-21** if 21-22 is not yet finalized.*
- *But, if the due date for submission of bid is after 31.12.2022; **say 01.01.2023 or after** you have to submit turnover documents for **19-20, 20-21, 21-22** only.*

[*The above is an example only and actual FYs shall depend on the actual due date for submission.*]

Name of Bidder (Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 2.3

Concurrent Commitments

(Bidder to state all their jobs being executed / yet to be complete)

SN	Full Postal Address of Client & Name of Officer-in-Charge	Description of the work	Value of contract in INR	Scheduled completion period	Date of commencement of work	Expected date of completion	Percentage complete as on date

Name of Bidder (Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 2.4

Declaration Of Equipments Tools & Tackles

The bidder shall submit herein details of equipments, tools, tackles proposed to be deployed for this work and shall indicate in each case whether the same is (a) already owned by bidder and available for use on this Contract.(b) anticipated to be hired by Contractor or (c) anticipated to be purchased by Contractor. In case of (a) present location shall be stated. In case of (b) and (c) location of hirer or supplier shall be stated.

SN	Item proposed to be deployed	Description, make, model & capacity	Numbers	Category (a) or (b) or (c) above	Location	Remarks

Contractor agrees to augment the above chart with additional number/categories of equipment if required to complete the work within the agreed time schedule of completion, as directed by the Engineer-in-Charge.

Name of Bidder (Signature of the authorised signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 2.5

Proposed Site Organogram

Our site organisation for this contract shall consist of the following categories of manpower with tentative numbers. Numbers of manpower of any category shall be increased based on instruction of the Engineer-in-Charge

Name of Bidder

(Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 2.6

Deviation Statement

Bids not conforming to biding document in totality and / or non-accompanied by necessary documents as asked for in the Bidding Document shall be liable for rejection. Any Bid containing exceptions/deviations shall be liable for rejection.

Deviation, if unavoidable, should be furnished as per Format for Exceptions / Deviations. **Owner shall not take cognizance of any deviation stipulated elsewhere in the Bid and shall be treated as null & void**. In case Bidder stipulates deviations, and there are sufficient Bids without any deviation, Owner shall have the right to reject such Bid at its absolute discretion and without giving any opportunity to such Bidder to make good such deficiency.

Bidder shall not stipulate any conditions in the **PRICE BID**. No stipulation, deviation, terms & conditions, presumption, basis etc. shall be stipulated in the priced bid. Any conditions, if stipulated, shall be treated as null and void and shall render the bid liable for rejection.

NRL will determine whether each bid (i) is accompanied by required EMD, if applicable; (ii) totally comply to the requirement of bidding document. NRL will examine the bids to determine whether they are complete and whether the documents have been properly signed, and whether the bids are generally in order.

During evaluation, if necessary, NRL may obtain clarifications on the Bid by requesting for such information / clarifications from any or all Bidders in writing. All responses shall be in writing, and no change in the price or substance of the bid shall be permitted unless specifically sought by NRL.

Bidders shall however note that no revision in quoted Rates shall be allowed, in case deviations which are not accepted by the Owner and are required to be withdrawn by the bidder in favour of stipulations of the bidding documents. Any price revisions, if stipulated, shall be treated as null and void and shall render the bid liable for rejection.

NRL reserve the right to assess Bidder's capability and capacity to execute the work using in-house information including taking into account other aspects such as concurrent commitments, past performance etc. NRL reserves the right to reject any or all the tenders received without assigning any reason thereof.

UNSOLICITED POST TENDER MODIFICATIONS

Bidders are advised to quote strictly as per terms and conditions of the bidding document and not to stipulate any deviations/exceptions. NRL, at its discretion, may request bidder to to withdraw deviation, reservation, or rectify omission in the bid related to documentation requirements. However, once technical bid is opened, the bidder shall not make any subsequent price changes, whether resulting or arising out of any technical / commercial clarifications sought on any deviations or exceptions mentioned in the bid. Similarly, no revision in quoted price shall be allowed should the deviations stipulated by him are not accepted by Owner and are required to be withdrawn by him in favour of stipulation of the bidding document. Any proposed price changes is likely to render the bid liable for rejection. In case of unsolicited price increase, such offer(s) of the Bidders shall be rejected. In case of unsolicited price decrease, the Bidder(s)'s offer shall be compared as per originally quoted prices and if the Bidder happens to be the recommended Bidder, the decrease in prices shall be taken into account for ordering.

Evaluation may be completed based on the content of the Bid itself without seeking any subsequent additional information, which may result in rejection of Bid. However, NRL may, at its discretion, request bidder to submit the necessary information or documentation, within a reasonable period of time, to withdraw deviation, reservation, or rectify omission in the bid related to documentation requirements. Requesting information or documentation on such account shall not be related to any aspect of the price of the Bid. NRL's request for clarification and the response shall be in writing.

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)

NRL Tender No. : PUR1011848

Annexure 2.6.1

Exceptions and Deviations

Sl. No.	Page no. of Bid Document	Clause No.	Subject	Deviations

NOTE: All exceptions / deviations taken by the BIDDER to the stipulations of the Bidding Document shall be brought out on this page only. Refer to the instructions and conditions stated above.

Name of Bidder

(Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 3

Policy for Micro and Small Enterprises (MSEs) & Start-Ups

SPECIAL CONDITIONS FOR MICRO AND SMALL ENTERPRISES (MSEs) BIDDERS :

With reference the Public Procurement Policy for Micro and Small Enterprises (MSEs) Order 2012 notified by the Government under the Micro, Small and Medium Enterprise Development Act, 2006 and subsequent amendments through following notifications:

- Notification S.O. 5670(E), dtd. 9th November, 2018
- Ministry of MSME letter D.O. No. 21(8)/2018-MA dated 13th November, 2018
- MoP&NG letter ref. No. J-25011/35/2016-Gen dated 15th November, 2018
- Gazette Notification no. 2119(E) dated 26.06.2020
- FAQs issued by Development Commissioner (MSME) OM F.No. 1(3)/2018-MA, Part-III dated 25th March, 2022
- DoE OM No. F 1/4/2021-PPD dated 18.05.2023 on concurrent application of PPP-MSE (order 2012) and PPP-MII (order 2017)
- MSME D.O. No. P-11/3/2023-Policy-DCMSME) dtd. 28.3.2025 (Gazette notification S.O. 1364(E) dtd. 21.03.2025

Micro and Small Enterprises (MSEs) shall be entitled for benefits, subject to terms and conditions as under:

A. Qualifying Criteria for MSE Bidder:

i) MSE bidder has to mandatorily submit a copy of Udyam Registration Certificate (https://udyamregistration.gov.in).

ii) If the bidder fails to submit Udyam Registration Certificate in the original offer, the bidder may not be considered for evaluation as MSE.

iii) The Udyam Registration Certificate shall be valid. The certificate may be verified online during the bid evaluation and particulars submitted must be found to be valid in the Udyam website.

B. Additional Qualifying Criteria for SC/ST MSE Bidder:

In order for MSE owned by SC/ST Entrepreneurs to qualify for benefits available under Public Procurement Policy for MSEs (order 2012) to SC/ST Entrepreneurs, the “Social Category” in Udyam Registration Certificate should state “SC” or “ST”.

Bidder must include the relevant page of Udyam Registration Certificate wherein the social category of the entrepreneur is mentioned.

C. Additional Qualifying Criteria for MSE Bidders owned by Women Entrepreneurs:

Micro & Small Enterprises shall be considered as owned by Women Entrepreneurs as per the below definition:

- In case of proprietary MSE, proprietor should be Women.
- In case of partnership MSE, the Women partner(s) should be holding at least 51% shares in the unit.
- In case of Limited companies, at least 51% share should be held by Women shareholder(s).

In order for MSE owned by Women Entrepreneurs to qualify for benefits available under Public Procurement Policy for MSEs (order 2012) to Women Entrepreneurs, the MSE shall additionally submit notarized copy of the following:

- In case of a proprietorship firm, the name and address of proprietor, and certified copy of Bank Account Details or Cancelled Cheque.
- In case bidder is a partnership firm, certified copy of the partnership deed.
- In case of company (whether private or public), certified copy of the `Certificate of Incorporation' together with certified copy of Memorandum/Articles of Association
- Self-certification by the women owner declaring herself as women owner of the MSE

The above documents shall not be required to qualify for aforementioned benefits when the Udyam registration certificate submitted by the bidder clearly mentions the “Gender” of the MSE and can also be verified online without restriction.

D. Benefits Under The Public Procurement Policy for Micro and Small Enterprises (MSEs) Order 2012

1. **Issue of Tender Sets Free of Cost**
   All Tenders shall be provided free of cost and tender documents are downloadable from the Central Public Procurement Portal (CPPP) **http://eprocure.gov.in/eprocure/app** or GeM portal or can be obtained from the Office of General Manager (Commercial). NITs are also published in NRL Website **www.nrl.co.in**

2. **Exemption from payment of EMD (Earnest Money Deposit)**
   MSE units meeting the qualifying criteria (point A above) shall be exempted from paying EMD, if EMD is applicable against the tender.

3. **Price preference for MSE Bidder:**

i) In tender, participating Micro and Small Enterprises quoting price within price band of L1+15% (evaluated price) shall also be allowed to supply a portion of requirement by bringing down the price to L1 price in a situation where L1 price is from someone other than a Micro and Small Enterprise and such Micro and Small Enterprise shall be allowed to supply up to 25 percent of total tendered value. [*Refer point F(i) for applicability*]

Matching of L1 price shall be offered to MSEs in the sequence of their ranking (i.e., L2, L3, L4 and so on).

In case of more than one such MSE within the L1+15% band, the supply shall be shared proportionately (to tendered quantity) provided such MSE bidders matches the L1 price.

ii) In case of tender item is non-splitable or non-dividable, etc. MSE quoting price within price band L1+15% may be awarded for full/complete supply of total tendered value to MSE, considering spirit of policy for enhancing the Government procurement from MSE, provided they agree to bring down their price to L1 price.

iii) NRL reserves the right to allow micro and small enterprises as well as MSEs owned by SC/ST entrepreneur and MSEs owned by Women, purchase preference as admissible under the prevailing procurement policy for MSEs.

iv) **For Supply of Goods only:**

- The quantity against the tender may be split to enable ordering of 25% of tender quantity to MSE bidder(s) within the price range of L1 bidder's price + 15% subject to their matching L1 bidder's evaluated price. [*Refer point F(i) for applicability*]

- In case where tender quantity can be split and MSE vendor is already getting order for more than 25% of the tender value by being L1 or through matching L1 price, no additional purchase preference is required to be given in that tender. In such cases, the sequence of matching L1 bidder's price shall start from the splitable item with highest amount onwards. Once 25% of the tender value is achieved for MSE vendor(s), no additional purchase preference is required to be given in that tender.

- The quoted prices by bidders against various items of tender shall remain valid in case of splitting of quantities to MSE bidder.

- Out of this 25% allocation for MSEs, 4% shall be to MSEs owned by SC/ ST entrepreneurs. However, in event of failure of MSEs owned by SC/ ST entrepreneurs to participate in the bidding process or meet the tender requirements and L1 price, 4% will be met from other MSEs.

- Additionally, out of above 25% allocation to MSEs, 3% shall be to MSEs owned by Women. However, in event of failure of MSEs owned by Women to participate in the bidding process or meet the tender requirements and L1 price, 3% will be met from other MSEs.

- While granting purchase preference as above, procurement of goods may include certain small work, or some services, which are incidental or consequential to supply of such goods such as transportation, insurance, installation, commissioning, training & maintenance.

Clarification:

- *In case where quantity against a line item cannot be split (i.e., 25% to MSEs) or items with single quantity or in grouped item, the complete line item/ group shall be awarded on MSE bidder within the price range of L1 bidder's evaluated price + 15% subject to their matching L1 bidder's price.*
- *In case, quantity(ies) against an item/ group cannot be split among MSEs, first opportunity shall be given to*
  - *MSEs owned by Women*
  - *then to MSEs owned by SC/ ST entrepreneurs, and*
  - *lastly to other MSEs, within the price range of L1 non-MSE bidder's evaluated price + 15%.*
- *In cases where MSE bidder in order of preference indicated above refuses to accept the L1 price, opportunity shall be provided to the other bidders in above order of preference and so on.*

v) **For Services only:**

- *In case the tendered scope cannot be split, the complete scope of Services shall be awarded on MSE bidder within the price range of L1 bidder's evaluated price + 15%, subject to their matching L1 bidder's price.*

- *In case, besides general MSEs, MSEs owned by SC/ ST and/ or MSEs owned by Women are within the price range of L1 bidder's evaluated price + 15%, first opportunity shall be given to*
  - *MSEs owned by Women*
  - *then to MSEs owned by SC/ ST entrepreneurs, and*
  - *lastly to other MSEs, within the price range of L1 non-MSE bidder's evaluated price + 15%.*

- *In cases where MSE bidder in order of preference indicated above refuses to accept the L1 price, opportunity shall be provided to the other bidders in above order of preference indicated above.*

vi) In case purchase preference is applicable, but negotiation is to be conducted with L1 bidder, negotiation shall be carried out. Price range within 15% shall be considered for MSE bidders based on the original prices of L1 bidder not on the negotiated prices. However, MSE bidder shall be offered to match the negotiated prices (even if, post negotiation, they are higher by more than 15% as compared to L1 bidder, provided they were within 15% of L1 bidder as per original quoted prices).

vii) **For Supply of Goods as well as Services:**
In case when the contract is awarded to an MSE bidders matching the L1 price refuses or fails to execute the supply/service after award, the quantities or unexecuted quantities may be subsequently offered to any of the other MSE bidders (not selected for award so far, and falling within the price band of L1+15%), in the sequence of their ranking (i.e., L3, L4 and so on) subject to their matching the evaluated L1 price. In absence of such MSE bidder, the quantity may be offered to the original L1 agency (non-MSE).

- In case of "refusal", subsequent award to next eligible agency shall be done within original or extended offer validity.

- In case of "failure", unexecuted quantities shall be offered to the next eligible agency within maximum one year from the original date of award.

Defaulting supplier/contractor shall be subject to penalties as per procedure.

E. Relaxation of Past Tract Record (PTR) for MSEs and Start ups

- The Pre-Qualification Criteria (PQC) related to prior turnover and prior experience of the bidder will be relaxed if the bidder is Micro or Small Enterprise as per latest definitions under MSME rules or Startups and meets the quality and technical specifications described in the tender, subject to submission of valid supporting documents by the bidder. In case any bidder is seeking exemption from Turnover / Experience Criteria, the supporting documents to prove his eligibility for exemption must be uploaded with his bid for evaluation by the buyer.
- As per Department of Expenditure's OM No.F.20/2/2014-PPD dated 20.09.2016, relaxation regarding the prior turnover and prior experience is applicable only to all startups recognized by Department of Industry & Internal Trade (DPIIT), subject to meeting of quality and technical specifications.
  An entity shall be considered as a 'start-up'-
  a) Up to ten years from the date of its incorporation/ registration.
  b) If its turnover for any of the financial years has not exceeded Rs 100 (Rupees Hundred) crore
  c) It is working towards innovation, development or improvement of products or processes or services, or if it is a scalable business model with a high potential of employment generation or wealth creation
  d) Provided further that in order to obtain benefits a Startup so identified under the above definition shall be required to be recognized as Startup by DPIIT.
- This waiver of prior turnover and prior experience will not be applicable for items related to public safety, health, critical security operation and equipment's etc.
- If PTR for MSEs is not completely waived off but proposed to relax the same up to certain extent compared to PQC set for other non MSE bidders, in such cases, prior experience may be partially relaxed, however, prior turnover will remain waived off.

F. Applicability of the Policy

i) For a participating bidder, MSE status shall be considered for purchase (price) preference in respect to procurement of goods and services only, if the vendor is registered as MSE. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product. Traders/Distributors/Sole Agents are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documents in this regard shall be uploaded along with the bid in respect of the offered product or service and buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid.

ii) Policy meant for procurement of only goods produced and service rendered by MSEs. However, traders /resellers /distributors /authorized agents will not be considered for availing benefits under Public Procurement Policy 2012 for MSEs, except exemption from payment of EMD.

iii) Public Procurement Policy is applicable for supply of goods and services. Works contract is not covered under the PP Policy for MSME. Accordingly, the clause D 3 (Price preference for MSE bidder) and clause E (Relaxation of past track record (PTR) for MSEs and Startups) as mentioned above will not be extended to works contracts.
iv) The provisions for MSE bidders mentioned in this document shall be applicable for limited enquiries as well as NITs.

G. Providing MSE benefits to Medium category bidders

As per amendment made in Micro, Small and Medium Enterprises Development Act, 2006 vide S.O. 2119(E), dated the 26th June, 2020, and published in Govt. of India gazette notification dated 18th October 2022.
The notification states that - " (5) In case of an upward change in terms of investment in plant and machinery or equipment or turnover or both, and consequent re-classification, an enterprise shall continue to avail of all nontax benefits of the category (micro or small or medium) it was in before the re-classification, for a period of three years from the date of such upward change."

Further it was clarified vide Press Release published on 19th October 2022 in Govt of India website https://pib.gov.in/PressReleaseIframePage.aspx?PRID=1869091 that, - “Non-tax benefits include benefits of various schemes of the Government, including Public Procurement Policy, Delayed Payments, etc.”

Therefore, a Medium category bidder can claim for benefits provided to MSEs as per our tender conditions, provided the bidder is eligible by meeting the conditions stipulated in the gazette notification stated above.

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Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 6

Policy Regarding Sharing Of Land Border With India

Following Restrictions under Rule 144(xi) of the General Financial Rules (GFRs), 2017- Department of Expenditure Order (Public Procurement No. 4) ref. No.F.7/10/2021-PPD (01) dated 23.02.2023 shall be applicable for this tender.
[The detailed guidelines are available on the website of DoE (https://doe.govin/)]

I. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority as specified in the DoE Order referred above.

Further, any bidder (including an Indian bidder) who has a Specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority.

II. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

III. "Bidder from a country which shares a land border with India" for purpose of this Order means:-

a. An entity incorporated, established or registered in such a country; or
b. A subsidiary of an entity incorporated, established or registered in such a country; or
c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
d. An entity whose beneficial owner is situated in such a country; or
e. An Indian (or other) an agent of such an entity; or
f. A natural person who is a citizen of such a country; or
g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

IV. The beneficial owner for the purpose of (iii) above will be as under:

1. In case of accompany or limited liability partnership the beneficial owner is the natural person(s), who whether acting alone or together or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

   Explanation---

   a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent. Of shares or capital or profits of the company.
   b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals.

4. Where no natural person is identified under (1) or (2) or (3) above the beneficial owner is the relevant natural person who holds the position of senior managing official;

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

V. An Agent is a person employed to do any act for another or to represent another in dealings with third person.

VI. The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with “Competent Authority”.

VII. The registration shall be valid at the time of submission of bid and at the time of acceptance of bid.

VIII. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution.

IX. Bidder mandatorily requires to submit “Certificate of Compliance” in the enclosed Form: A. This certificate need to be submitted in the Company’s Letter Head and should be sealed and signed by the authorized signatory on behalf of the bidder. Non-submission of Form A may lead to disqualification for Techno-Commercial evaluation of the submitted bid.

In case at any stage pre or post order placement it is found that that the certification furnished is false their bid shall be summarily rejected or order terminated as applicable. NRL may at its discretion initiate penal action against such bidders which may include Black Listing Holiday Listing the party /encashment of EMD or PBG submitted as per contractual provision etc.

Note I: For better clarity and to obtain information in detail bidders are requested to go through the Govt Circular issued by the Department of Expenditure Govt of India to this effect.

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Annexure 6.1

FORM A

CERTIFICATE OF COMPLIANCE

(**On Bidder's Letter Head**)

To,
CGM (Commercial)
Numaligarh Refinery Limited
Numaligarh, Assam.

Sub: Certificate of Compliance

Bidder's Details :

Sl.	Bidder's Undertaking	Please put Yes (✔) or No (**X**), as applicable
1	(A) "I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country".	
	(B) Or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [If applicable, evidence of valid registration by the Competent Authority shall be attached.]	
2	(A) "I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority."	
	(B) Or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [If applicable, evidence of valid registration by the Competent Authority shall be attached.]	
3	(A) "I have read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (ToT) arrangement. I certify that this bidder does not have any ToT arrangement requiring registration with the competent authority."	
	(B) "I have read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (ToT) arrangement. I certify that this bidder has valid registration to participate in this procurement." [If applicable, evidence of valid registration by the Competent Authority shall be attached.]	

Place :

Date :

Signature of Authorized Signatory :

Name of Signatory :

Designation :

Seal of the Company :

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 7.2

Code Of Integrity In Public Procurement

1. The bidders/ suppliers should sign a declaration about abiding by a Code of Integrity for Public Procurement in bid documents as per format provided below. In case of any transgression of this code, the bidder is liable for punitive actions such as cancellation of bids / contracts, holiday listing, and so on.

2 **Code of Integrity for Public Procurement:** Procuring authorities as well as bidders, suppliers, contractors and consultants should observe the highest standard of ethics and should not indulge in the following prohibited practices, either directly or indirectly, at any stage during the procurement process or during execution of resultant contracts:

i) **"Corrupt practice":** making offers, solicitation or acceptance of bribe, rewards or gifts or any material benefit, in exchange for an unfair advantage in the procurement process or to otherwise influence the procurement process or contract execution;

ii) **"Fraudulent practice":** any omission or misrepresentation that may mislead or attempt to mislead so that financial or other benefits may be obtained or an obligation avoided. This includes making false declaration or providing false information for participation in a tender process or to secure a contract or in execution of the contract;

iii) **"Anti-competitive practice":** any collusion, bid rigging or anti-competitive arrangement, or any other practice coming under the purview of The Competition Act, 2002, between two or more bidders, with or without the knowledge of the procuring entity, that may impair the transparency, fairness and the progress of the procurement process or to establish bid prices at artificial, non-competitive levels;

iv) **"Coercive practice":** harming or threatening to harm, persons or their property to influence their participation in the procurement process or affect the execution of a contract;

v) **"Conflict of interest":** participation by a bidding firm or any of its affiliates that are either involved in the consultancy contract to which this procurement is linked (except the procurement is a continuation of the firm's earlier consultancy services); or if they are part of more than one bid in the procurement; or if the bidding firm or their personnel have financial or business relationships with any official of procuring entity who are directly related to tender or execution process of the contract or such official has any personal interest in the bidding firm; or improper use of information obtained by the (prospective) bidder from the procuring entity with an intent to gain unfair advantage in the procurement process or for personal gain.

V(a) Additionally, following aspects should be taken into account for **consultancy services**.

<u>Conflict of Interest in case of Consultants</u>:-

a. The consultant is required to provide professional, objective, and impartial advice, at all times holding the Procuring Entity's interests paramount, strictly avoiding conflicts with other assignments or his/its own corporate interests and acting without any consideration for future work.

b. The consultant has an obligation to disclose to the Procuring Entity any situation of actual or potential conflict that impacts its/his capacity to serve the best interest of its client/Procuring Entity. Failure to disclose such situations may lead to the disqualification of the consultant or termination of its/his contract during execution of the assignment.

c. Without limitation on the generality of the foregoing, and unless stated otherwise in the data sheet for the RfP document, the consultant (i.e., private entities) shall not be hired under the circumstances set forth below:

a) Conflicting activities: a firm that has been engaged by the client to provide goods, works, or non-consultancy services for a project, or any of its affiliates, shall be disqualified from providing Consultancy service resulting from or directly related to those goods, works, or non Consultancy services for the same project. Conversely, a firm hired to provide consultancy services for the preparation or implementation of a project, or any of its affiliates, shall be disqualified from subsequently providing goods or works or non-consultancy services resulting from or directly related to the consultancy services for such preparation or implementation for the same project;

b) Conflicting assignments: Consultants (including its experts and sub- consultants) or any of their affiliates shall not be hired for any assignment that, by its nature, may be in conflict with another assignment of the consultant for the same Procuring Entity.

vi) **"Obstructive practice":** materially impede the procuring entity's investigation into allegations of one or more of the above mentioned prohibited practices either by deliberately destroying, falsifying, altering; or by concealing of evidence material to the investigation; or by making false statements to investigators and/or by threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or by impeding the procuring entity's rights of audit or access to information;

3 **Obligations for Proactive Disclosures**

i) Procuring authorities as well as bidders, suppliers, contractors and consultants, are obliged under Code of Integrity for Public Procurement to suo-moto proactively declare any **conflicts of interest** (coming under the definition mentioned above – pre-existing or as and as soon as these arise at any stage) in any procurement process or execution of contract. Failure to do so would amount to violation of this code of integrity.

ii) Any bidder must declare, whether asked or not in a bid document, any **previous transgression(s) of such a code of integrity** with any entity in any country during the last three years or of **being debarred** by any other procuring entity. Failure to do so would amount to violation of this code of integrity.

iii) To encourage voluntary disclosures, such declarations would not mean automatic disqualification for the bidder making such declarations. The declared conflict of interest may be evaluated and mitigation steps, if possible, may be taken by the procuring entity. However, proactive declarations of previous transgression(s) of a code of integrity with any entity in any country; or of being debarred by any other procuring entity, shall have no bearing in the tender evaluation, unless specifically mentioned elsewhere in the notice inviting tenders.

4 **Punitive Provisions:** Without prejudice to and in addition to the rights of the procuring entity to other penal provisions as per the bid documents or contract, if the procuring entity comes to a conclusion that a (prospective) bidder/supplier, directly or through an agent, has violated this code of integrity in competing for the contract or in executing a contract, the procuring entity may take appropriate measures including one or more of the following:

i) **if his bids are under consideration in any procurement:**
   a) Forfeiture or encashment of bid security
   b) calling off of any pre-contract negotiations, and;
   c) rejection and exclusion of the bidder from the procurement process

ii) **if a contract has already been awarded:**
   a) Cancellation of the relevant contract and recovery of compensation for loss incurred by the procuring entity;

b) Forfeiture or encashment of any other security or bond relating to the procurement;
c) Recovery of payments including advance payments, if any, made by the procuring entity along with interest thereon at the prevailing rate;

iii) **Provisions in addition to above:**

a) Banning/ debarment of the bidder from participation in future procurements of the procuring entity for a period as specified in the NRL's policy for holiday listing Banning/ Debarring of Contractors/ Suppliers.
b) Initiation of suitable disciplinary or criminal proceedings against any individual or staff found responsible.

*****

Job Name	:	Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No.	:	PUR1011848

Annexure 7.2.1

Format for declaration by the Bidder for Code of Integrity

(**On Bidder's Letter Head**)

To,

_____

_____

M/s Numaligarh Refinery Limited

Dear Sir,

I/We hereby declare that we shall abide by the Code of Integrity for Public Procurement as mentioned under Annexure-I-A of your Tender document; And to the best of my/our knowledge and understanding have no conflict of interest, as mentioned under Annexure-I-A of the Tender.

The details of any previous transgressions of the code of integrity with any entity in any country during the last three years or of being debarred by any other Procuring Entity are as under:

(a)

(b)

(c)

[*Write "NA" if not applicable*]

It is understood that any wrong declaration / non-declaration in this context shall make me / my agency / company liable for further action under Holiday Listing procedure of NRL for Breach of the Code of Integrity for Public Procurement.

Thanking you,

Yours Faithfully,

Name of Bidder

(Signature of the authorised signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 8

Self-Declaration Of Debarment / Blacklisting / Holiday Listing & Allied Firms

(1) **SELF DECLARATION OF DEBARMENT / BLACKLISTING / HOLIDAY LISTING**

I/We hereby declare that I am / we are currently not serving any holiday listing/blacklisting/debarment orders issued by Numaligarh Refinery Limited (NRL) or Ministry of Petroleum & Natural Gas (MoPNG) debarring me/us from participation in tendering or carrying on business dealings with NRL/MoPNG.

I/We understand that bids from the bidders who are on holiday list by NRL or MoPNG will not be considered.

It is understood that any wrong declaration in this context shall make me / my agency / company liable for action under Holiday Listing procedure of NRL.

Note: "Ministry of Petroleum & Natural Gas (MoPNG)" is the Administrative Ministry of NRL and the term in this context shall mean the ministry itself and not the other PSUs or Departments under it.

2) **DECLARATION OF ALLIED FIRMS OF THE BIDDER**

I/We hereby declare that following are my/our allied firm(s) (*as defined in NRL's holiday listing policy*):-

Name(s), PAN and GST number(s) of our allied firms are as follows:-

Sl. No.	Name of Allied Firm	PAN	GSTN

It is understood that in case of debarment of me / my agency / company by NRL, the debarment shall be automatically extended to my/our allied firms.

Name of Bidder

(Signature of the authorised signatory of bidder with stamp, date & place)

Note: *Please refer NRL's current "Policy for Holiday listing/ Banning/ Debarring of Contractors/ Suppliers" available in NRL website www.nrl.co.in for details.* [www.nrl.co.in → Tenders → Download Manuals → Holiday Listing Policy]. *The definition of "Allied Firm" is elaborated therein.*

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 9

Self-Declaration Of Conflict-of-interest Free Bid

Terms & Conditions in respect of "Conflict of Interest" in the bidding process: -

A bidder shall not have conflict of interest with other bidders. The Bidders found to have a conflict of interest shall be disqualified.
A bidder may be considered to have a conflict of interest with one or more parties in the bidding process, if:

a) They have controlling partner(s) in common; or
b) They receive or have received any direct or indirect subsidy/ financial stake from any of them; or
c) They have same legal representative/agent for purposes of this bid; or
d) They have relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the bid of another Bidder; or
e) Bidder participates in more than one bid in this tender. Participation by a bidder in more than one bid will result in the disqualification of all the bids in which the parties are involved. However, this does not limit the inclusion of the components/ sub-assembly/ Assemblies from one bidding manufacturer in more than one bid.
f) In cases of agents quoting in offshore procurements, on behalf of their principal manufacturers, one agent cannot represent two manufacturers or quote on their behalf in a particular tender enquiry. One manufacturer can also authorize only one agent/dealer. There can be only one bid from the following:
    a) The principal manufacturer directly or through one Indian agent on his behalf; and (in case of receipt of the bids from both the Indian agent & and the principal manufacturer shall be approached to arrange for withdrawal of one of the bids; in case of non-withdrawal, the bid from the principal manufacturer shall be considered.)
    b) Indian/foreign agent on behalf of only one principal.
g) A bidder or any of its affiliates provided the consultancy (through another contract) in the preparation of the design or technical specifications of this supply/contract.
h) In case of a holding company having more than one independently manufacturing units or more than one unit having common business ownership/management, only one unit should quote. Similar restrictions would apply to closely related sister companies. Bidders must proactively declare such sister/ common business/ management units in same/ similar line of business.
i) However, restrictions under (a), (b), (c), (d) shall not be applicable against licensor recommended agents/ suppliers.
j) Self-declaration from participating bidders w.r.t not having any conflict of interest with other participating bidders shall be submitted with bids. In case any conflict of interest is found to have occurred, such bidders shall be informed to keep any one bid and withdraw the rest of the bids; In case of non-withdrawal, NRL shall disqualify all such bids with conflict of interest.

Self-declaration of conflict-of-interest free bid:

I am/ We are participating in this tender (whole, or part of the tender), taking note of the above terms and conditions and hereby declare that there is no other participating bidder in the same (whole, or part of the tender), which may create conflict of interest as described above, to the best of our knowledge and understanding.

I/We understand that in case any conflict of interest is found to have occurred, NRL reserves the right to disqualify the bids from the bidders deemed to have conflict of interest.

I/ We further declare that in case I/ We observe that any conflict of interest is found to have occurred after the unpriced bid opening, I/ We shall immediately inform NRL in writing regarding such conflict of interest within 2 days from unpriced bid opening.

It is understood that any wrong declaration / non-declaration in this context shall make me / my agency / company liable for further action under Holiday Listing procedure of NRL.

Date:

Place: **(Seal & signature of Authorized signatory of bidder)**

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 10

Indemnity Bond Cum Undertaking Regarding Gst

(**On Bidder's Letter Head**)

Recipient Name: **M/s Numaligarh Refinery Limited**

State	NRL GSTIN	Address:
Assam	18AAACN6984B1ZD	NRP Complex, NRL site, Numaligarh, Golaghat, Assam-785699
West Bengal	19AAACN6984B1ZB	Fourth floor, plot no.31, Bharat Bhawan, 118 Prince Gulam Md.Shah Road, Golf Green, Kolkata, West Bengal-700095
Delhi	07AAACN6984B2ZF	6th Floor, 15-17, Tolstoy house, Tolstoy Marg, New Delhi-110001

Sub: Payment of GST Amount and filing of GST Return for availing Input Tax Credit (ITC) by Numaligarh Refinery Limited (NRL).

Sir / Madam,
With reference to payment of GST amount and filing of GST Return for availing Input Tax Credit (ITC) by NRL as per eligibility provisions for the identified Invoices raised by us, we, M/s _____, having our Registered Office at _____, possessing GST Identification No _____ hereby declare and undertake as follows:

1. We have disclosed all the facts relating to our firm to M/s Numaligarh Refinery Limited
2. We hereby agreed and undertake to file GSTR-1 on time i.e. 11th of the next month so that NRL can take Input Tax Credit by matching GSTR-2A.
3. We hereby declare that we shall deposit GST for the related invoices by 20th of the succeeding month as per the provision of GST law (or within due date as per GST laws).
4. We hereby declare that we will file GSTR 3B related to all invoices in time i.e. 20th of the next month (or within due date as per GST laws).
5. We hereby agree and undertake to indemnify as under:-

a. The Firm / Company shall take all necessary safeguards to ensure availing of ITC for all invoices raised on NRL without any financial loss to NRL.
b. In case of rejection of ITC by the concerned Tax Authority, for non-payment of GST amount by us or for any other reasons attributable to us, we hereby undertake and agree to indemnify NRL in full against all consequences, liabilities of any kind whatsoever directly arising from denial of ITC which includes interest and penalty arising out of such irregular availment of ITC by you opined by GST Authority.
c. We hereby agree and confirm that, any breach of the above indemnification or undertakings shall be construed as breach of the terms and conditions for reimbursement of GST and NRL shall be at liberty to take such action against us including recovering of reimbursed GST amount from
    i. Any of our Bank Guarantee executed in your favour, if any,
    ii. Security Deposit paid for any of your work, if any or
    iii. Other unpaid invoices, if any of us raised with recipient

_____
Signature of the Authorized Signatory of the Indemnifier / Bidder

Name:
Designation:
Seal:
Date:

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 11

Compliance To Tender

(**On Bidder's Letter Head**)

Date:

To,
_____
_____
_____
_____

Sub: Acceptance of Terms & Conditions of Tender.

Dear Sir,

1. I/ We have downloaded / obtained the tender document(s) for the above mentioned 'Tender/Work' from the website(s) namely, _____ website(s).

2. I / We hereby certify that I / we have read the entire terms and conditions of the tender documents from Page No. _____ to _____ (including all documents like annexure(s), schedule(s), etc.), which form part of the contract and I / we shall abide hereby by the terms / conditions / clauses contained therein.

3. The corrigendum(a) / addendum(a) issued from time to time by your department/ organization too has also been taken into consideration, while submitting this acceptance letter.

4. I / We hereby unconditionally accept the tender conditions of above mentioned tender document(s) / corrigendum(s) in its totality / entirety.

5. I / We certify that all information furnished by the our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/ organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including holiday listing.

Yours Faithfully,

Name of Bidder

(Signature of the authorized signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 12

Settlement Of Disputes

All disputes of difference whatsoever which shall at any time arise between the parties hereto touching or concerning the works or supply or the execution or maintenance thereof of this contract/supply or the rights touching or concerning the works or the execution effect thereof or to the rights or liabilities or the construction meaning , operation or effect thereof or to the rights or liabilities of the parties or arising out of or in relation thereto whether during or after completion of the Contract/supply or whether before or after determination, foreclosure or breach of the contract/supply (other than those in respect of which the decision of any person is by the contract/supply expressed to be final and binding) shall be endeavored to be amicably settled by the parties in the following manner:

a) At the first instance by the Engineer-In-Charge/ Purchase Officer.
b) At the second instance by the Chief Executive of NRL (Presently Managing Director) or authorized representatives of Chief Executive of NRL.
c) Parties may opt for conciliation under Arbitration and Conciliation Act 1996 as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof.
d) In case party is not satisfied with the above, the matter will be referred to Arbitration.
e) The option of amicably settling the dispute will be open at any time during and post arbitration or court litigation or Tribunal or in any other jurisdictional forum and/or before or after award, order, judgement etc. passed by arbitrator(s), court(s), tribunal(s) or any other jurisdictional forum(s).

ARBITRATION

i. Any dispute or difference of any nature whatsoever, any claim, cross-claim, counter-claim or set off of NRL (hereinafter Company) against the Contractor/Vendors or of the Contractor/Vendors against company or regarding any right, liability, act, omission on account of any of the parties hereto arising out of or in relation to this agreement shall be resolved through Arbitration under Arbitration and Conciliation Act 1996 as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof.

ii. Reference to Arbitration shall be made by writing a letter to the Managing Director of the Company, with copy to the Contractor/Vendor or the company, as the case may be.

iii. On receipt of such letter referring the dispute to Arbitration, Managing Director or any other officer of the Company delegated by Managing Director shall, within 30 days from the receipt of the said letter, suggest to the parties the names of three persons, who are not disqualified to act as such Arbitrator under the Arbitration and Conciliation Act 1996, as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof for selection of one of them for appointment as a sole Arbitrator, to adjudicate the dispute(s) between the parties.

iv. If while referring the dispute to Arbitration the parties mutually agree that the Arbitration will be by a Tribunal consisting of three Arbitrators, then each party will nominate one person, who is not forbidden to act as Arbitrator and the two Arbitrators so nominated will select the third and Presiding Arbitrator to adjudicate the dispute.

v. Subject to the provisions of the Arbitration and Conciliation Act, 1996, as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof, the Award of the Arbitrator or the Arbitrators, as the case may be, shall be final, conclusive and binding on both parties to the Agreement.

vi. The party(ies) against whom the Arbitration proceedings have been initiated, that is to say, the Respondents in the proceedings, shall be entitled to prefer a Cross-Claim, Counter- Claim or set off before the Arbitrator(s) in respect of any matter or issue arising out of or in relation to the Agreement without seeking a formal reference to Arbitration for such Counter-Claim, Cross Claim or set off and the Arbitrator(s) shall be entitled to consider and deal with the same as if the matters arising there from has/have been referred to him/them originally and deemed to form part of the reference made to Arbitration.

vii. Place of arbitration shall be unless otherwise agreed by the parties, will be Numaligarh Or Guwahati as mutually agreed.

viii. The parties hereby agree that, unless the Arbitration and Conciliation Act,1996, as amended by the Arbitration and Conciliation (Amendment) Act, 2015 or any statutory modification or re-enactment thereof prohibits, the courts in the city of Golaghat or Guwahati shall have jurisdiction to entertain any application or other proceedings in respect of anything arising under this agreement and any award or awards made by the Sole Arbitrator(s) / Arbitral tribunal shall be filed in the concerned courts in the District Court of Golaghat or Kamrup Metro.

ix. Notwithstanding anything contained in the contract between the parties, the aforementioned clause nos. (i) to (viii) shall be applicable only in case where the value of dispute between the parties, including the claim, counter claim, or set off is less than Rs. 10 Crores, for contracts of domestic procurements.

x. In case of a value of the dispute is above Rs. 10 Crores for contracts of domestic procurements, the party shall have to approach the Managing Director, NRL for Mediation.

MEDIATION

I. Initiation of Mediation

For disputes valued above Rs. 10 Crores, the concerned party shall approach the Managing Director of NRL with their claim. Upon receiving such a request, the Managing Director shall refer the matter to a High-Level Committee (HLC) for mediation, where applicable.

II. High-Level Committee (HLC)
A High-Level Committee will be constituted by the MD of NRL, comprising a Chairman and two Members, following these guidelines:

a. Chairman
The Chairman will be selected from individuals of high integrity from the following categories:-

- Retired Civil Servant not below the rank of Joint Secretary.
- An officer who has served as an Independent External Monitor (IEM) at any Public Sector Undertakings (PSUs).
- Retired High Court or Supreme Court Judge.

b. Members
Members will be individuals who had superannuated from any Central Oil PSUs not below the rank of CGM.

III. Mediation Procedure

Mediation shall be conducted within the territorial jurisdiction of a court or tribunal competent to decide the subject matter of the dispute in accordance with the Mediation Act 2023. Mediation under this Act must be completed within one hundred and twenty days from the date fixed for the first appearance before the mediators.

IV. Post-Mediation Recourse

In the event of the failure of the mediation process, the parties retain the right to pursue appropriate legal recourse.

FOR THE SETTLEMENT OF DISPUTES WITH PSEs / Government (except a dispute or difference concerning the Railways, Income Tax, Customs and Excise Duties):-

As per Government guidelines / circulars, etc prevailing at the time of reference of the disputes.

JURIDICTION: All disputes, actions and proceedings arising out of this contract shall be under the jurisdictions of the courts in the city of Golaghat or Guwahati.

Name of Bidder

(Signature of the authorised signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 13

Signing & Stamping Of Contract

To ensure the enforceability of the detailed work order cum contract agreement, proper payment of stamp duty is essential for full enforceability in a court of law. NRL will procure the stamp paper and send it along with the Work Order cum Contract Agreement.

The following standard clause as provided in section 3.20 of the GCC (reproduced below) shall be included in the Detailed Work Orders by NRL, so that this document is binding upon the parties and construed as Contract.

QUOTE [*Documents referred will be suitably removed / added / filled by NRL, as applicable]*

Signing Of Contract

"This Order ("*WO/PO/DLoA/FOA No. and date*") is issued pursuant to the Terms and Conditions mentioned in the NIT (including, inter-alia, the General Conditions of Contracts (GCC) 'and/or' the General Purchase Conditions (GPC) including the clause for Arbitration therein; Special Conditions of Contract 'and/or' Special Purchase Conditions; Schedule of Rates (SOR); General Obligations, Specifications, Drawings, Plans, Time Schedule of Completion/Delivery); 'and/or' Terms and Conditions mutually agreed in writing thereafter 'and/or' outlined herein. Acknowledgement of this Order by [*Contractor's Name*] implies an agreement to adhere to these specified terms / documents, forming a binding contract between [*Contractor's Name*] (the Contractor) and Numaligarh Refinery Limited (the Owner)."

[Sealed / Signed & Dated by – *NRL Signatory*]

[Sealed / Signed & Dated in acknowledgement by - *Contractor's Name*]

UNQUOTE

The contractor shall acknowledge receipt of the work order within 7 days of receipt. The contractor shall sign & seal (or digitally sign) the acknowledgement and return the same to NRL.

****

Name of Bidder

(Signature of the authorised signatory of bidder with stamp, date & place)

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 14

Instructions: ONLINE EMD SUBMISSION *(through the EMD Gateway of IndusInd)*

The EMD must be submitted ONLINE within the submission due date & time specified in the NIT and tender document through the online EMD Gateway of IndusInd Bank link as per guidance and instructions below:

1. Visit **EMD Submission Gateway** of NRL through **IndusInd Bank** at the URL:
   - https://nureltdindusindbank.gerpegov.com
     The link to gateway is also available in NRL Website under https://www.nrl.co.in → Tenders → Active Links → IndusInd EMD Gateway

   A detailed 'User Manual for Bidders' is available in the EMD gateway.
   - The manual is also available in NRL corporate website under https://www.nrl.co.in → Tenders → Tender Manual → IndusInd EMD Gateway Manual)

2. **Bidder Registration Screen** shall appear. Bidder must read and accept the 'Terms & Condition's and proceed to the registration page. Then fill up the bidder profile information.

3. Once registration process is completed, **User ID & Password** will be sent to the bidder through system generated mail shared from tenderalerts@tenderwizardhelpdesk1.in at their registered e-mail Id. During the process, bidder needs to authenticate their mail id and mobile to activate their account. Once the registration is completed, the bidder's profile is created. Now the Bidder can log in using the credentials.

4. Upon logging in, bidder will be directed to a page under "**UnApplied**" tab listing all tenders with pending EMD or Tender Fee payments i.e. where bidder is yet to make any payment. Bidders can also locate specific tenders using the search criteria.

5. Bidders must click '**Request Tender Form**' to proceed with the EMD payment. The EMD amount will auto-populate, and payments can be made via an NEFT Challan or the E-Payment gateway. (*It may be noted that NRL does not have any tender form and access to download or participate in the tender does not require any separate tender fee*.)
   (The link '**Request Tender Form**' does not carry any meaning, except that it is used for making EMD payment.)

6. After click on Pay Now– Bidder will get an option for Credit Cards, Debit Cards, Net Banking, UPI and QR Code (Google Pay, PhonePe, PayTM) Bidders can select their preference and proceed further for the payment.

7. Once the transaction is complete, an **acknowledgment copy** i.e. EMD Deposit receipt will be generated; this can be printed or downloaded later from the bidder profile. This shall be required in the tendering process (*explained below*).

8. For any technical help, the bidders can contact EMD Gateway Support desk:
   Contact No: 080-45811365, 080-45982100 and email: mail@etenderwizard.com.

9. The EMD amount, wherever applicable, is clearly indicated on the online procurement portals, namely CPPP and GeM. However, bidders shall strictly adhere to the instructions for submission of EMD as stipulated in this tender document only. In case of any discrepancy between the instructions provided on the online portals and those contained in this tender document, the provisions of this tender document shall prevail and supersede the instructions available on the respective portals.
   - CPP : Since the IndusInd Bank payment gateway is not available on the CPPP procurement portal, the payment mode is reflected as Offline (BG) on the CPPP portal. In case of CPPP tenders, bidders are required to make a dummy entry in the EMD fields of CPPP by entering the Transaction ID (as mentioned on the IndusInd Bank EMD payment receipt) as the Instrument Number, the payment date as the issue date, any valid date as the expiry date, and IndusInd Bank as the issuing bank.

- GeM : Likewise, the IndusInd Bank payment gateway is not available on the GeM portal. Accordingly, IndusInd Bank is indicated as the Advisory Bank on the GeM portal. No EMD payment is required to be made through the GeM portal.

Upload of EMD Receipt: Bidders shall upload the EMD payment receipt along with the technical bid on the respective tender portal (CPPP or GeM), as per the provision available in the portal.

10. <u>Bidders have the following alternative options in lieu of submission of EMD through IndusInd EMD gateway:</u>

a) Bank Guarantee for Earnest Money Deposit (Refer Annexure 15 & 15.1)
b) Surety Bond for Earnest Money Deposit (Refer Annexure 16 & 16.1)
c) Bid Security Declaration (Refer Annexure 14.1 on Bidder's Letterhead)

i. In tenders where EMD is applicable, Bid Security Declaration must be submitted by **ANY BIDDER AVAILING EMD EXEMPTION** within the provisions of the tender.

MSE (having valid UDYAM registration) and **Start-ups** (as recognized by the Department for Promotion of Industry and Internal Trade - DPIIT) are exempted from EMD (For details Annexure 3). Instead of the EMD deposit receipt, they must submit the respective proof of exemption along with their bid (For details Annexure 3):

- UDYAM registration certificate issued by Ministry of Micro, Small and Medium Enterprises (MSME)
- DPIIT Startup Certificate issued by Department for Promotion of Industry and Internal Trade (DPIIT)

Any other bidder availing EMD exemption within the provisions of the tender, must also submit Bid Security Declaration. Any Bidder who has submitted EMD, do not have to submit the Bid Security Declaration.

ii. In tenders where EMD is NOT applicable, Bid Security Declaration has to be submitted by **ALL THE BIDDERS**. This requirement shall be applicable for MSEs, Start-Ups, Govt agencies, etc. although the tender exempts EMD for all bidders.

Job Name	:	Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No.	:	PUR1011848

Annexure 14.1

Bid Security Declaration
(**On Bidder's Letter Head**)

To,
Numaligarh Refinery Limited,
----------,
----------,
----------.

Subject: Bid Security Declaration

Dear Sir / Madam,
After examining / reviewing provisions of above referred tender documents (including all corrigendum/ Addenda), we M/s ……. have submitted our Offer/ Bid no: …..……..,
We, M/s ……. hereby understand that, according to your conditions, we are submitting this Bid Security Declaration.
We understand that we will be put on holiday/ banning list (as per Holiday Listing Policy of Numaligarh Refinery Limited in this regard), if we are in breach of our obligation(s) as per following:

1. We withdraw or amend our tender suo-moto after opening of bid & within the period of bid validity; or
2. We impair or derogate from the tender in any respect within the period of validity of the tender; or
3. We do not accept the 'arithmetical corrections' of our bid price during evaluation, as per provision of tender document; or
4. We become successful bidder and fail to sign / accept the contract, if awarded to us; or
5. We refuse or fail to furnish Contract Performance Security within the stipulated time as per tender / LOA or within the extended time allowed by NRL (if any); or
6. We are found to have neglected / abandoned the LOA / contract; or
7. We refuse or fail to execute the awarded Contract as per the terms and conditions of the Contract; or
8. We are found to be having indulged in corrupt/fraudulent /collusive/coercive practice as per procedure; or
9. We commit any breach of tender conditions during execution of the contract.

This declaration is valid till the validity of our offer and shall extend automatically if the bid validity date is extended from our side.

For & on behalf of M/s _____

Signature :
Name :
Designation :
Date :
Company Seal :

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
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Annexure 15

Instructions: Bank Guarantee (BG) Submission

1) BG shall be as per the prescribed format provided below.

2) The bank guarantee applicable for various purposes are listed below along with the applicable formats

Annexure no. & name	Purpose of BG
15.1: Bank Guarantee for Earnest Money Deposit	The Bank Guarantee (BG) shall be valid for at least 06 (Six) months from the final bid submission date. The bid security is normally to remain valid for a period of 60 (sixty) days beyond the final bid validity period. In case, Contract Performance Security (CPS) is applicable, the successful bidder has to keep his Bid Security, if submitted in the form of a BG, valid till CPS is submitted. The contractor shall be required to suitably extend the period of Bank Guarantee.
15.2: Bank Guarantee for Contract Performance Security	The Bank Guarantee (BG) shall be valid for at least 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee / defect liability period (if any).
15.3: Bank Guarantee for Security Deposit	The Bank Guarantee (BG) shall be valid for at least 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee / defect liability period (if any).
15.4: Bank Guarantee for Indigenous Purchase (Warranty / Guarantee)	The Bank Guarantee (BG) shall be valid for at least 03 (three) months beyond the date of completion of all contractual obligations of the contractor, including warranty / guarantee / defect liability period (if any).
15.5: Bank Guarantee against Advance payment	The Bank Guarantee (BG) shall be valid as per tender/order. The validity period shall normally be as long as the advance or any part thereof remains outstanding and shall expire and become ineffectual only after the recovery of entire sum (or as stated in the tender / order).
15.6: Bank Guarantee against Milestone payment	The Bank Guarantee (BG) shall be valid as per tender/order.

3) Acceptable forms of Bank Guarantee: -

(a) Bank Guarantee should preferably be issued in electronic form. For issuance of Electronic Bank Guarantee (e-BG) through National E-Governance Service Limited (NeSL) platform, details of NRL (beneficiary) are as under: -

(i)	PAN	AAACN6984B
(ii)	Name	Numaligarh Refinery Limited
(iii)	Date of Incorporation	22.04.1993
(iv)	E-mail ID	ketool.a.tadvi@nrl.co.in
(v)	Contact No.	9974952135
(vi)	Legal Constitution	Entity
(vii)	Registered Office address	122A, G. S. ROAD CHRISTIANBASTI, GUWAHATI, Assam, India, 781005
(viii)	Registered Office Pin code	781005
(ix)	Communication address	Numaligarh Refinery Limited, PO-Numaligarh Refinery Project, Dist. Golaghat, Assam, 785699
(x)	Communication address Pin code	785699

(b) Other acceptable form of BG would be BG routed through SFMS platform. Relevant information are as follows:

(i) Beneficiary bank details:
Axis Bank

Chhibber House, Ground Floor, G.S Road, Guwahati -781005
IFSC: UTIB0000140

(ii) Advising message to be sent to beneficiary bank:
IFN 760 / IFN 760 COV for issuance of bank guarantee
IFN 767 / IFN 767 COV for amendment of bank guarantee
Field number as “7037” and Particulars (to be mentioned in Row 1) as “NRL140025551” should be correctly captured in the above messages.
The supplier shall submit to NRL the copy of SFMS message as sent by the issuing bank along with the original bank guarantee. Issuing bank mail ID should be invariably mentioned on the face of the bank guarantee.

(c) If BG is neither issued in electronic form (e-BG) nor routed through SFMS route, the Bank guarantee submitted by the tenderers needs to be immediately verified from the issuing bank before acceptance. For acceptance of such BGs, the BG or its covering letter should contain the name, designation and code number of the Bank officer(s) signing the guarantee(s). The address and contact details (including telephone no.) of the controlling officer of the branch of the bank issuing the BG should be included.

*****

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Annexure 15.2

Bank Guarantee for Contract Performance Security

(to be executed on Non-Judical Stamp Paper of appropriate value as per proforma below)

Dear Sirs,

In consideration of the M/s Numaligarh Refinery Limited, 122 A, G.S. Road, Christian Basti, Guwahati - 781005, Assam, India (hereinafter called the Company which expression shall include its successors and assigns) having awarded to M/s ..... Constitution..... , Address..... (hereinafter referred to as "The Contractor" which expression shall wherever the subject or context so permits include its successors and assigns) a supply contract in terms inter-alia, of the Company(s) letter of acceptance No./ Contract / Work / Purchase Order No.: ..... dtd. ..... and the General Purchase Conditions / General Conditions of Contract (as applicable for this contract) of the Company and upon the conditions of contractor's furnishing for the performance of contractor's obligations and/or discharge of contractor's liability under and/or in connection with the said contract up to a sum of (in figures) ..... (in words) .....(only) amounting to 3% (three percent) of the contract value.

We (name)..... (Constitution)..... (hereinafter called the Bank which expression shall include its successors and assigns) hereby jointly and severally undertake and guarantee to pay the Company in (currency) forthwith on first demand in writing and without protest or demur any and all moneys anywise payable by the Contractor to the Company under, in respect or in connection with the said contract inclusive of all the Company's losses and damages and costs (inclusive between attorney and client), charges and expenses and other moneys anywise payable in respect of the above specified in any notice of demand made by the Company to the Bank with reference to this guarantee upto an aggregate limit of (in figures) ..... (in words) ....only.

And the Bank hereby agrees with the Company that:

i) The guarantee/undertaking shall be a continuing Guarantee/Undertaking and shall remain valid and irrevocable for all claims of the Company and liabilities of the Contractor arising upto and until midnight of..... with a claim period until six (6) months thereafter, i.e., until midnight of ……

ii) This Guarantee/Undertaking shall be in addition to any other guarantee or security whatsoever that the Company may now or at any time any wise have in relation to the Contractor's obligations/liabilities under and/or in connection with the said contract and the Company shall have full authority to take recourse to or reinforce this security in preference to the other security(ies) at its sole discretion, and no failure on the part of the Company in enforcing or requiring enforcement of any other security shall have the effect of releasing the Bank from its full liability hereunder.

iii) The Company shall be at liberty without reference to the Bank and without affecting the full liability of the Bank hereunder to take any other security in respect of the Contractor's obligations and/or liabilities under or in connection with the said contract, and to vary the terms vis-a -vis the contractor of the said contract or to grant time and or indulgence to the contractor or to reduce or to increase or otherwise vary the prices of the total contract value or to release or to forebear from enforcement of all or any of the obligations of the contractor under the said contract and/or the remedies of the Company under any other security (ies) now or hereinafter held by the indulgence /or arrangements with the contractor or release or forbearance whatsoever which under the laws relating to securities shall but for these Provisions have the effect of releasing the Bank from its full liability to the Company hereunder or of prejudicing rights of the Company against the Bank.

iv) This guarantee/undertaking shall not be determined or affected by the liquidation or winding up dissolution or change of constitution or insolvency of the contractor but that in all respects and for all purpose be binding and operative until payment of all moneys payable to the Company in terms hereof.

v) The Bank hereby waive all rights at any time inconsistent with the terms of this Guarantee/Undertaking and the obligations of the Bank in terms thereof shall not be any wise affected or suspended by reason of any dispute or disputes having been raised by the contractor (Whether or not pending before any Arbitrator Officer, Tribunal or Court) or any denial of liabilities by the contractor or any other order of communication whatsoever by the contractor stopping or preventing or purporting to stop or prevent any payment by the Bank to the Company in terms hereof.

vi) The amount stated in any notice of demand addressed by the Company to the Bank as liable to be paid to the Company by the contractor or as suffered or incurred by the Company on account of any losses or damages of costs, charges

and/or expenses shall as between the Bank and the Company be exclusive of the amount so liable to be paid to the Company or suffered or incurred by the Company, as the case may be, and payable by the Bank to Company in terms hereof.

vii) Notwithstanding anything contained herein above, unless a claim or demand under this guarantee is made against the bank within six months from the date of expiry of the Guarantee, all the rights of the company under this guarantee shall be forfeited and the bank shall be released and discharged from all liability hereunder unless this guarantee shall have been previously extended.

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Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 15.3

Bank Guarantee for Security Deposit

(to be executed on Non-Judical Stamp Paper of appropriate value as per proforma below)

To
Numaligarh Refinery Ltd.
122A, G.S. Road, Christianbasti
Guwahati –781005, Assam

Dear Sirs:
M/s …….. have taken tender for the work of …… ...…….. (Work Order no…….) for Numaligarh Refinery Limited, 122A, G.S. Road, Christianbasti, Guwahati-781005.

The tender conditions of contract provide that the Contractor shall pay a sum of Rs……..… (Rupees ……) as Security Deposit in the form there in mentioned. The form of payment of security deposit includes guarantee executed by Nationalized Schedule 'A' Bank, undertaking full responsibility to indemnify Numaligarh Refinery Ltd. in case of default.

The said ……. has approached us and at their request and in consideration of the premises we having our office at ……. have agreed to give such guarantee as hereinafter mentioned.

1. We hereby undertake and agree with you that if default shall be made by M/s…… in performing any of the terms and condition of the tender or in payment of any money payable to Numaligarh Refinery Ltd. We shall on demand pay to you in such manner as you direct the said amount of Rupees …… only or such portion thereof not exceeding the said sum as you from time to time require.

2. You will have the full liberty without reference to us and without affecting this guarantee postpone for any time or from time to time the exercise of any of the powers and rights conferred on you under the contract with the said ……. and to enforce or to forebear from endorsing any powers or rights or by reason of time being given to said …… which under law relating to the sureties would but for provision have the effect of releasing us.

3. Your right to recover the said sum of Rs. …….. (Rupees …….) from us in manner aforesaid will not be affected or suspended by reason of the fact that any dispute or disputes have been raised by the said M/s ……. and /or that any dispute or disputes are pending before any officer, tribunal or court.

4. The guarantee herein contained shall not be determined or affected by the liquidation or winding up dissolution or changes of constitution or insolvency of the said, but shall in all respects and for all purposes be binding and operative until payment of all money due to you in respect of such liabilities is paid.

5. Our liability under this guarantee is restricted to (Rupees. ……). Our guarantee shall remain in force until …….. unless a suit or action to enforce a claim under Guarantee is filled against us within six months from …… (Which is date of expiry of guarantee) all your rights under the said guarantee shall be forfeited and we shall be relived and discharged from all liabilities thereunder.

6. We have power to issue this guarantee in your favour under Memorandum and Articles of Association and the undersigned has full power to do under the power of Attorney dated ……. granted to him by the Bank.

Yours faithfully,

_____ Bank
By its Constituted Attorney

Signature of a person duly
Authorized to sign on behalf
Of the Bank

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Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 16

Instructions: Insurance Surety Bond

Instructions: -

(a) The surety bond shall be from a Surety Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI) as amended from time to time.
(b) The surety bond should contain the name, designation, and code number of the officer(s) signing the surety bond.
(c) The address, telephone number, E-mail, and other details of the head office of the surety insurer as well as of the issuing branch should be mentioned in the covering letter of the issuing branch. The letter may also include any web portal link, from where the Surety Bond can be confirmed by the Company.
(d) The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Insurer issuing the Insurance Surety Bond.

The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Insurer issuing the Insurance Surety Bond.

Job Name : Piping and other ancillary work of EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)
NRL Tender No. : PUR1011848

Annexure 16.2

Surety Bond For Contract Performance Security

(to be executed on Non-Judical Stamp Paper of appropriate value as per proforma below)

Ref..... Guarantee No.....

To,

Chief General Manager (Commercial)
Numaligarh Refinery Limited,
Pankagrant, PO: Numaligarh Refinery Project,
Dist-Golaghat (Assam), India, PIN-785699

Dear Sir (s),

In consideration of you, Numaligarh Refinery Limited, having its office at [122A, G.S. Road, Christianbasti Guwahati-781005] (hereinafter referred to as the "**NRL**", which expression shall unless it be repugnant to the subject or context thereof include its successors and assigns) having awarded the Contract to [**insert name of the Contractor**] having its registered office at [**insert address of the Contractor**] (hereinafter referred to as the "**Contractor**", which expression shall unless it be repugnant to the subject or context thereof include its/their executors, administrators, successors and assigns) in relation to [**insert Contract Name/Work Description**] pursuant to the Contract Agreement bearing Reference Number [**insert reference number**] (hereinafter collectively referred to as "**Contract Documents**"), we [**insert name of the Guarantor**] having our registered office at [**insert registered address of the Guarantor**] and one of its branches at [**insert relevant branch address of the Guarantor**] (hereinafter referred to as the "**Guarantor**", which expression shall include its successors and assigns), at the request of the Contractor, do hereby irrevocably, unconditionally, and without reservation guarantee the due and faithful performance, discharge, and compliance of all terms, conditions, and obligations under the Contract Documents by the said Contractor and unconditionally undertake to pay NRL forthwith on first demand without any demur, reservation, recourse, contest, protest, or proof of satisfaction or condition, and without reference to the Contractor, an amount of Rs. [**insert amount**] (hereinafter referred to as the "**Guarantee Amount**") as our primary obligation if the Contractor shall fail to perform, discharge, or comply with any of the terms, conditions, or obligations contained in the said Contract Documents.

NOW, THEREFORE, the Guarantor hereby unconditionally and irrevocably guarantees and affirms as follows:

1. This Performance Guarantee (hereinafter referred to as the "**Guarantee**") shall be a continuing guarantee and shall remain in full force and effect for all claims or demands made by the NRL on the Guarantor until the NRL discharges this Guarantee, subject however that the NRL shall have no claims under this Guarantee after [**insert time and date including at least 03 (three) months beyond the defect liability period, plus six months' claim period**] or any written extension(s) thereof.

2. In order to give full effect to this Guarantee, NRL shall be entitled to treat the Guarantor as the principal debtor. NRL shall have the fullest liberty without affecting in any way the liability of the Guarantor under this Guarantee from time to time to vary any of the terms and conditions contained in the said Contract Documents or to extend time for performance of the Contract or the validity period of the Performance Guarantee or the period for compliance with any obligations by the Contractor or to postpone for any time and from time to time any of the powers exercisable by it against the said Contractor and either to enforce or forbear from enforcing any of the terms and conditions contained in the said Contract Documents or the securities available to NRL, and the Guarantor shall not be released from its liability under these presents by any exercise by NRL of the liberty with reference to the matters aforesaid or by reason of time being given to the said Contractor or any other forbearance, act or omission on the part of NRL or any indulgence by NRL to the said Contractor or by any change in the constitution of NRL or its absorption, merger or amalgamation with any other person or any other matter or thing whatsoever which under the law relating to Guarantee would but for this provision have the effect of releasing the Guarantor from its such liability.

3. It shall not be necessary for the NRL to proceed against the Contractor before proceeding against the Guarantor and the Guarantee herein contained shall be enforceable against the Guarantor as principal debtor notwithstanding the existence of any other undertaking or security for any indebtedness of the Contractor to the NRL and notwithstanding that any such

security shall at the time when claim is made against the Guarantor or proceedings taken against the Guarantor hereunder, be outstanding or unrealized.

4. The amount stated by the NRL in any demand, claim or notice made with reference to this Guarantee shall as between the Guarantor and the NRL for the purpose of this Guarantee be final, conclusive and binding of the amount payable by the Guarantor to the NRL hereunder.
5. The liability of the Guarantor to the NRL under this Guarantee shall remain in full force and effect notwithstanding the existence of any difference or dispute between the Contractor and the NRL, the Contractor and the Guarantor and/or the Guarantor and the NRL or otherwise howsoever related to this Guarantee or the liability of the Contractor to the NRL, and notwithstanding the existence of any instructions or purported instructions by the Contractor or any other person to the Guarantor not to pay or for any cause withhold or defer payment to the NRL under this Guarantee, with the intent that notwithstanding the existing of such difference, dispute or instructions, the Guarantor shall be and remain liable to make payment to the NRL in terms thereof.
6. We, the Guarantor, further agree that NRL shall be the sole judge to decide as to whether the Contractor is in default of due and faithful fulfilment and compliance with the terms and conditions contained in the aforesaid Contract Documents and the decision of NRL that the Contractor is in default as aforesaid shall be final and binding on us, notwithstanding any differences between NRL and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority.
7. This Guarantee shall not be determined or affected by the liquidation or winding up or dissolution or change of constitution or insolvency of the Contractor or any change in the legal constitution of the Guarantor or the NRL.
8. Any notice by way of request, demand or otherwise hereunder shall be sufficiently given or made if addressed to the Guarantor and sent by courier or by registered mail or via email to the Guarantor at the address set forth herein.

9. We undertake to make the payment on receipt of your notice of claim on us addressed to name of Guarantor along with branch address and delivered at our above branch and/or via email to: [**insert email ID**] which shall be deemed to have been duly authorized to receive the said notice of claim.

10. We, the Guarantor, further undertake not to revoke this Guarantee during its currency except with the previous express consent of NRL in writing.

11. The Guarantor declares that it has power to issue this Guarantee and discharge the obligations contemplated herein, the undersigned is duly authorised and has full power to execute this Guarantee for and on behalf of the Guarantor.

12. This Guarantee issued by us is in full compliance with applicable laws of India, as amended from time to time.

13. This Guarantee is for the benefit of NRL and its successors and assigns. This Guarantee is binding not only on the Guarantor, but also on the Guarantor's successors and permitted assigns. The Guarantor shall not assign its rights and obligations hereunder to any person, insurer, company or other entity except as permitted by NRL in writing.

14. Notwithstanding anything herein:
    i. The Guarantor's liability under this Guarantee shall not exceed Rs. [**insert Guarantee Amount**];
    ii. This Guarantee shall remain in force until [**insert**];
    iii. This Guarantee shall have additional claim period of [**six**] months thereafter; and
    iv. The Guarantor is liable to pay the Guarantee Amount or any part thereof under this Guarantee only if NRL serves upon the Guarantor a written claim or demand upon the Guarantor or any branch thereof on or before the aforesaid claim period.

Signed and sealed this [●] day of [●], [●] at [●].

SIGNED, SEALED, AND DELIVERED
For and on behalf of the Guarantor by:

(Signature)
(Name)
(Designation)
(Code Number)
(Address)

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Annexure 19

SCHEDULE OF RATES

NUMALIGARH
REFINERY
LIMITED
(A GOVERNMENT OF INDIA UNDERTAKING)

SCHEDULE OF RATES

1.Tender No.	PUR1011848
2.Job Name.	Piping and other ancillary work of EBMS Blending system in Numaligarh
3.Quoted Currency.	INR
4.Note	Please do not write the price here. This SOR is for information of technical description only. Quote in the BOQ/ priced bid section as described.
5.Tender Inviting Organization.	NUMALIGARH REFINERY LIMITED COMMERCIAL DEPARTMENT , NRL SITE (NUMALIGARH)

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount

00010 PIPING WORKS for NRMT EBMS system

The item covers the following services:

10	Piping work	Inch Dia	1,400.000	

Fabrication of CS NIBR (All grade &NB;thk=<10mm) piping: Fabrication of Carbon Steel NIBR (All grade &NB;thickness=<10mm) piping including dismantling(if any) of existing pipe lines &associated systems like drains,vents etc.by flame cutting, wheel cutting, hacksaw cutting, grinding; transportation of pipes, flanges, fittings etc. from owner's storage point to worksite; preservation of all materials, cleaning, marking etc. including supply of machineries, tools, tackles, manpower; fabrication including cutting, grinding, edge preparation as per job requirement, (inclusive of grinding the edges of pipe, fittings, flanges etc. to match with the mating edges of uneven, different thickness wherever required), fit-up, welding, erection of pipes,valves and fittings of all types &thickness/routing over sleepers, overhead on racks etc. at all elevation including piping supports, DP testing, radiography , NDT as required by NRL with all arrangement for inspection, flange opening &box up, fixing of gaskets, bolts, nuts wherever required, cleaning, flushing by water, compressed air, hydrostatic testing , and any other type of testing as specified, drying by compressed air, including surface preparation , paint supply &application of paint as per NRL painting standard, cleaning of the area, completing all such works in all respect as per specification, drawings &instruction of E.I.C. Stage wise inspection of above activities shall be recorded and duly signed by TPI.

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount
20	Dismantling &Erection of equipment Dismantling/removal of existing eqipment/machines &their subassemblies from foundation without any damage to Equipment/machine/subassemblies/components using suitable earth moving equipment , sling transportation of the dismantled/removed Equipment/machine/subassembles to worksite using trailors of appropriate length and capacity &securing to trailers , assembly of sub-assemblies, placing the equipments/machines on foundations with appropriate capacity crane&slings, erection of assemblies/subassemblies , levelling, aligning, including chipping &dressing of foundations (if any) and providing necessary Scaffoldin, manpower for testing, commissioning, rectifying defects if any and completing the work in all respects . Includes Dismantling of structural members of roof, strucural frames,other structural members to facilitate dismantling / removal/ erection of the equipment/machines and again restoring the dismantled roof &frames .	Metric Tonnes	20.000		
30	Scaffolding Providing rigid; well secured steel scaffolding for any purpose as and when required; at any position; adjacent to any equipment as per the requirement and instructions of EIC including well secured platform at any position including supply of scaffolding material, plateform, clamp.Only for piping job.	Cubic meter	800.000		

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount
40	Structural steel work	Kilogram	750.000		
50	12” CS pipe Supply of Pipe (BE, ERW): 12",S20, API 5L GR.B PSL1, B-36.10	Meter	60.000		
60	8” CS pipe Supply of Pipe (BE, SEAMLESS): 8",S20, API 5L GR.B PSL1, B-36.10	Meter	54.000		
70	6” CS pipe Supply of 6" NB SMLS PIPE; PIPE 6"/ASTM A106 GR.B/STD/B-36.10/BE,SEAMLESS	Meter	18.000		
80	8" GATE VALVE Supply of 8" GATE VALVE; 8" GATE.VLV/API-600/BODY-ASTM A 216 GR WCB, TRIM-13% CR STEEL, FLGD,150,B16.5,RF/125AARH,SHT NO-51301	Numbers	4.000		
90	8" WN Flange	Numbers	10.000		

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount
	Supply of 8" WN Flange; 8" FLNG.WN/ASTM A 105, 150# ,B16.5,150, RF/125AARH/STD/ /SER.FIN				
100	12" WN Flange	Numbers	5.000		
	Supply of 12" WN Flange; 12" FLNG.WN/ASTM A 105, 150# ,B16.5,150, RF/125AARH/STD				
110	6" WN Flange	Numbers	7.000		
	Supply of 6" WN Flange; 6" FLNG.WN/ASTM A 105, 150# ,B16.5,150, RF/125AARH/STD/SER.FIN				
120	T-TYPE STRAINER	Numbers	1.000		
	Suppy of T-TYPE STRAINER, 6.00"",BW,150,STD, BODY: ASTM A 234 Gr:WPB, INTERNALS:ASTM A 240 TYPE 304				
130	8" Elbow.90 Deg	Numbers	12.000		
	Supply of 8" Elbow.90 Deg; 90D ELBOW 8.00 R1.5D/B16.9/BW/S20/ASTMA234GrWPB				
140	10" Elbow.90	Numbers	3.000		
	Supply of 10" Elbow.90 Deg; ASTM A 234 GR. WPB/B 16.9/BW,1.5D/STD				

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount
150	12" Elbow.90 Deg Supply of 12" Elbow.90 Deg; ASTM A 234 GR. WPB/B 16.9/BW,1.5D/STD	Numbers	6.000		
160	6" Elbow.90 Deg Supply of 6" Elbow.90 Deg; ASTM A 234 GR. WPB/B 16.9/BW,1.5D/STD	Numbers	4.000		
170	EQ.TEE 8.00 Supply of EQ.TEE 8.00 B16.9/BW/STD/ASTMA234/GrWPBW	Numbers	4.000		
180	EQ.TEE 12.00 Supply of EQ.TEE 12.00 B16.9/BW/STD/ASTMA234/GrWPBW	Numbers	5.000		
190	Spiral Gasket 8.00 Supply of EQ.TEE 12.00 B16.9/BW/STD/ASTMA234/GrWPBW	Numbers	15.000		
200	Spiral Gasket 12.00	Numbers	10.000		

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount
210	Spiral Gasket 6.00	Numbers	8.000		
	Supply of Spiral Gasket 12.00 ASME B16.20/150/B16.5/SS316 SPR.WND/ GRAF.FILL with SS inner and CS outer centering ring				
220	Stud M22x150	Numbers	150.000		
	Supply of Stud M22x150 with 2Nuts/SA193 Gr.B7/SA194 Gr.2H				
230	ERW PIPE/10.00/B36.10/ S20/ API 5LGr.B	Meter	12.000		
	Supply of ERW PIPE 10.00 B36.10/ BE/ S20/ API 5LGr.B				
240	EQ.TEE 10.00	Numbers	1.000		
	Supply of EQ.TEE 10.00 B16.9/BW/S20/ASTMA234GrWPB.				
250	ECC.REDUCR 10.0X6.00 B16.9/BW/STD/STD/AS	Numbers	1.000		
	Supply of ECC.REDUCR 10.0X6.00 B16.9/BW/STD/STD/ASTMA234GrWPB				
260	CHECK VALVE 6.00	Numbers	1.000		

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount
270	CHECK VALVE 10.00 Supply of CHECK VL. 10.00/RF/150/BS 1868/ASTM A 216 GR.WCB/TRIM-13% CR.STEEL/SHT53301	Numbers	1.000		
280	GATE VALVE 10.00 Supply of GATE VL. 10.00/RF/150/API 600/ASTM A 216 GR.WCB/TRIM-13% CR.STEEL/SHT51301	Numbers	1.000		
290	10" WN Flange Supply of FLNG.WN/B-16.5/ASTM A 105/150/RF/125AARH 10.0 INCH SCH STD	Numbers	4.000		
300	Spiral Gasket 10.00 Supply of Spiral Gasket 10.00 ASME B16.20/150/B16.5/SS316 SPR.WND/ GRAF.FILL with SS inner and CS outer centering ring	Numbers	6.000		
	Total net item value :				

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount

00020 CIVIL WORKS EBMS system

The item covers the following services:

10	Earthwork in Excavation & Backfilling	Cubic meter	50.000	
	Excavation for Structures (Earth work in excavation of foundation of structures as per drawing and technical specification, including setting out, construction of shoring and bracing, removal of stumps and other deleterious matter, dressing of sides and bottom,backfilling the excavated earth to the extent required and utilising the remaining earth locally for road work.) A. Manual Means (i) Ordinary soil (Depth upto 3 m)(without dewatering)			
20	Steel reinforcement for R.C.C. work	Kilogram	1,200.000	
	Steel reinforcement for R.C.C. work including straightening, cutting,bending, placing in position and binding all complete upto plinth level.. Thermo-Mechanically Treated bars of grade Fe-500D or above.			
30	Centering & shuttering	Square meter	80.000	
	Centering and shuttering including strutting, propping etc. and removal of form work for :Foundations, footings, bases for columns			

Item Ref.	Description	Unit	Qty	Rate in INR Figures	Amount
40	Providing & laying PCC 1:4:8	Cubic meter	2.000		
50	Providingn & laying RCC works 1:1.5:3	Cubic meter	10.000		
	Providing and laying in position specified grade of reinforced cement concrete, excluding the cost of centering, shuttering, finishing and reinforcement - All work up to plinth level : 1:1.5:3 (1 cement : 1.5 coarse sand (zone-III) derived from natural sources : 3 graded stone aggregate 20 mm nominal size derived from natural sources)				
	Total net item value :				

Signature :

Name :
Address of the :
Contractor :

Place :
Date :

Annexure 20

SPECIAL CONDTIONS OF CONTRACT

NUMALIGARH REFINERY LIMITED

A GOVERNMENT OF INDIA UNDERTAKING

Special Conditions of Contract

Name of Work: Piping and other ancillary work in EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)

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NUMALIGARH REFINERY LIMITED
(A Govt. of India Enterprise)

1. introduction

Numaligarh Refinery Limited (NRL), popularly known as Assam Accord Refinery, is a Government of India Enterprise located at Numaligarh, Dist. Golaghat, Assam. Commercial production of the Refinery commenced in October 2000.

The Refinery is well connected by air, road, and rail. The nearest airport –Jorhat is 70 kms away from Refinery Site. Road distance from Guwahati to Numaligarh is about 250 kms through NH-37 towards east. The nearest rail head is at Furkating Rly Jn., 35 kms from Refinery.

2. Location of Site

The site for the job - "**Piping and other ancillary work in EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)**" is located inside refinery complex NRL, Numaligarh, Golaghat - 785699. Nearest Railway Station is Furkating (Golaghat) and Nearest Airport is Jorhat.

3. General

3.1 In case of an irreconcilable conflict between General Conditions of Contract, Special Condition of Contract, Scope of work, Specifications, Drawings, Schedule of rates, Indian or any other applicable standards the following shall prevail to the extent of such irreconcilable conflict in order of precedence.

a) Detailed letter of work order along with statement of agreed variation, if any.

b) Letter of Award.

c) Tender drawing/item specification in the drawing.

d) Detailed Scope of Work in the SCC.

e) Job specifications/Technical Specifications/Material specifications.

f) Special Conditions of Contract.

g) General Conditions of Contract

h) Indian Standard.

i) Other applicable standard

3.2 It will be the Contractor's responsibility to bring to the notice of the Engineer-in-Charge any irreconcilable conflict in various parts of the Contract Documents before starting the works or making the supply with reference to which the conflict exists.

3.3 All the works shall be carried out in sound workmanship and true to line, level, plumb, and as per the best practice of the trade.

3.4 The materials, design, and workmanship shall satisfy the applicable standards, specifications contained herein, and Codes referred to. Where the Technical Specifications stipulate requirements in addition to those additional requirements shall also be satisfied.

3.5 In the absence of any specifications, for any material, design or works, the same shall be performed /supplied/executed in accordance with the instructions/directions of the Engineer-in-Charge, which will be binding on the Contractor.

3.6 Wherever it is mentioned in the specifications that the Contractor shall perform certain work or provide certain facilities, it is understood that the Contractor shall do so at his own cost and the Contract Price shall be deemed to have included cost of such performance and provisions, so mentioned.

4. Scope of Work

Brief scope of work for this job consists of the following:

A. Design, fabrication and erection of structurally supported pipeline as per tender complying all applicable ASME/EIL standards and meet all the requirement as per OISD standard 108/130.

B. Supply of required pipe, pipe fittings, flanges, valves, gaskets, studs, nut- bolts along with structural supporting members for the piping work.

C. Leakage testing of pipeline system as per ASME/EIL standards.

D. Engagement of all manpower, safety & supervisory staff and supply of all safety accessories like hard hat, safety shoes, apron, gloves, equipment and its transportation.

E. All the materials, consumables, services, tools, tackles, equipment etc. required for completion of the job is in Contractor's scope of supply.

F. All material transportation inside the NRMT premises including loading/unloading of materials shall be under Contractor's scope.

G. All material, manpower, tools & tackles or any other resources required for completion of the job is in contractor's scope.

Any other miscellaneous work connected with the above items in order to complete the work in all aspects as per approved drawings or instruction of the Engineer-in-Charge shall also be included in the scope of the work.

5. Intend

Through this tender, NRL intends to engage a competent Contractor for the Job "Piping and other ancillary work in Numaligarh Refinery Marketing Terminal (NRMT)" at **NRL, Golaghat, Assam-785699.**
The Contractor shall adopt all precautions for Safe Construction site management following all Health, Safety & Environment provisions to complete the project in a time-bound manner.

6. **Engineer-in-charge (EIC)**

The EIC of this job will be CM (PIH) or his/her authorized representative. For any clarification on the tender by Contractors and instructions during the pendency of the execution of the job, he/she may be contacted.

7. Contractual Period

12 (Twelve) months from the date of site handover**.**

8. Defect Liability Period

The defect liability period shall be 12 months from the date of completion of the work in all aspect.

9. Site visit and collection of information.

The intending Contractors shall be deemed to have visited the site and familiarized themselves with site conditions before submitting their bids. The contractors are advised to get acquainted with the proposed work and its site and study the technical specifications/ Drawings/datasheet etc and special conditions carefully before tendering. No claim of any sort shall be entertained on account of any site conditions and ignorance of specifications and special conditions.

10. Workfront Availability

During site handover, total work front may not be available. In that case, contractor shall execute the job in phase manner as per the availability of work front. Any delay in execution claimed by the contractor in this regard will not be entertained. Therefore, Contractors should keep that point in notice while quoting for this tender.

11. Temporary Works

All temporary and ancillary works including enabling works connected with the main work shall be in the scope of the Contractor and the Rates quoted by them shall be deemed to have included the cost of such works. These temporary requirements including other temporary structures shall be removed immediately after the completion of the jobs at the contractor's own cost.

12. Royalty on forest material used.

The contractor shall deposit royalty and obtain the necessary permit/certificate as per the Assam Minor Mineral Concession (Amendment) Rules, 2021, dated 7th October 2021 (Third Schedule) and the contractor should consider this while bidding.

13. Instructions

The Contractor shall comply with all instructions issued to him by the E.I.C or his/her representative for the subject job.

14. Statutory Requirements

a) The Contractor shall take out a suitable Contractor All Risk (**CAR)** Insurance policy covering entire scope of the works under this contract for the value of work as per tender conditions and arrange to keep the policy valid till completion of the job. One copy of the Insurance should be handed over to NRL.

b) The Contractor shall arrange a workman compensation insurance (WCI) policy against ESI as per requirements.

c) The Contractor shall apply for Labour License as per requirements, and this shall be kept valid till

completion of the job.

d) Necessary PF & ESI contribution of Contractor's labourers will have to be paid by Contractor as per statutory authority's regulations and NRL shall be absolved of all the risk.

e) Wage payment sheet along with PF challan and ESI challan shall be submitted and uploaded monthly through online C-Quel system along with/without monthly RA Bills.

f) For more details General Conditions of Contract (GCC) of NRL may please be referred to. On failure to comply with these statutory requirements, a penalty shall be imposed on the contractor as deemed fit.

15. Measurement of Work & Terms of Payment

Measurement shall be duly certified by the EIC or his/her representative before submitting any bill to NRL for release of payment along with PF, ESI, wage sheet details. No bill shall be processed without proper certification by NRL EIC or his/her representative and verification of wage & PF, ESI-related documents. Bill will be routed through NRL online bill tracking system.

85% Payment will be made through R/A bills against the certified measurement of the work done and balance 15% shall be made after successful testing, acceptance and completion of a piping system in totality.

16. Mobilization of men, materials, and machinery

- Mobilization has to be started within thirty (30) days of site handover otherwise NRL has the right to exercise the option for offloading the job at the 'risk and cost' of the selected Contractor.
- All expenses towards mobilization at the site and de-mobilization including bringing in equipment, workforce, materials, dismantling the equipment, clearing the site etc. shall be deemed to be included in prices quoted and no separate payment on account of such expenses shall be entertained.

17. All materials, equipment, machinery etc. once brought by the contractor within the project area, will not be allowed to be removed from the premises without the written permission of the NRL.

18. Schedule of Rates

- The Schedule of Rates shall be read in conjunction with Special Conditions of Contract, General Conditions of Contract, scope of work, scope of material supply, Technical Specifications, Drawings, and any other document forming a part of this contract.
- The Contractor must note that the tendered rates shall cover all the items and accessories necessary for the completion of the entire works and their obligation under the contract and all matters and things necessary for completion and commissioning of the job to the satisfaction of NRL/Engineer-in-Charge.

19. Escalation

No escalation of the contract value, in any form whatsoever will be entertained till completion of the project in all aspect.

20. Idle Charge or Extended Stay Compensation

No idle charges or compensation shall be paid for idling of the contractor's staff /labor/other resources etc. on any ground or due to any reason whatsoever. NRL will not entertain any claim in this respect.

21. Construction Power & Water

NRL may provide construction water and power free of cost to the contractor subject to availability. The contractor shall make his own arrangement to tap power from the source provided by NRL to the construction site at his own cost. Further, the contractor may make their own arrangement for construction water and power in case of interruption or non-availability in the supply of these facilities by NRL. Any claim by the contractor for delay in execution of the job due to disruption in water and power supply by NRL shall not be entertained.

22. Hiring of Tractor/Trailer/Hydra/Crane and other machineries etc. from NRL

Contractor can hire equipment on a chargeable basis from NRL based on availability and as per the prevailing rate. The contractor can't claim a delay due to the non-availability of hired equipment of NRL.

23. List of key personnel to be deployed at Site.

The Contractor shall at his cost provide and ensure continued effective supervision of the work with the help of his site staff. The contractor shall submit the detailed site organogram along with the biodata & supporting documents of each engineer/ supervisory staff before the commencement of work. The list of executing staff at the site shall be as per Table 01. The rate of penalties for non-deployment of executing staff will be applicable as per the table below. NRL will inform when the executing staff to be deployed at site.

Table: 1: Minimum Key Technical Personnel to be deployed as per direction of EIC:

Sl. No.	Item Description	Min. Qualification	Min. Experience	Nos. to be deployed	Penalty/Day/ per deficient manpower (Rs.)
1	Site Engineer (Mechanical)	Graduate in Mechanical Engineering OR	2 years	1	1333
		Diploma in Mechanical Engineering	3 years		
2	Civil Engineer (As per requirement)	Graduate in Civil Engineering OR	2 years	1	1333
		Diploma in Civil Engineering	3 years		
3	Safety Supervisor	Graduate/diploma in Safety or Any graduate/diploma having field experience	2 years for Graduate/3 years for	1	1000

		of Safety supervisor	Diploma		

- The contractor has to engage skilled technicians and helpers with the technical crew as per job requirements.
- Certified welders shall be engaged for the welding jobs and their certificates to submit before execution of the job.

24. Work to be executed in accordance with specifications, drawings, datasheets, and work orders etc.

The contractor shall execute the whole and every part of the work in the most substantial and workmanlike manner both as regards materials and otherwise in every respect in strict accordance with the specifications. Drawings accompanying the Tender document are for tendering purposes only. Based on site condition and pipe route the successful Contractor shall prepare detail drawings (isometric & P&ID etc.), pipe support drawings at their own cost and get approval from NRL prior to execution of the job. The Contractor will not be entitled to any claim for any variation in the detailed drawings and the tender drawings.

The contractor shall comply with the provisions of the contract and execute the works with care and diligence and maintain the works and provide all labour and materials, tools. & tackles including measurement and supervision of all works and other things of temporary or permanent nature required for such execution and maintenance in so far as the necessity for providing these is specified or is reasonably inferred from the contract. The contractor shall take full responsibility for the adequacy, suitability, and safety of all the works and methods of construction.

25. Supply of materials

a) Contractor to supply pipe, pipe fittings, flanges, valves, gaskets, studs, nut-bolts along with structural supporting members as per SOR.

b) Supply all required materials, tools & tackles shall have to be arranged by the contractor.

c) Manpower required for the execution of job shall be under the scope of Contractor and he shall arrange necessary documents and apply for gate pass for workers in online gate pass system of NRL.

d) Any other materials like tools & tackles, consumables and construction materials like reinforcement steel, structural steel, cement, sand, stone gravel etc. required to complete the job in totality as per approved drawings and standards are in the scope of the contractor.

26. Variation of the contract quantity

The quantities are tentative and may vary as per site requirements.

27. Underground and Overhead Structures

The contractor may encounter overhead/ underground structures/pipelines/utilities /OFC/electric lines during the execution of the work and the Contractor is required to collect such information on his own before commencing the work. The Contractor shall execute the work in such a manner that

the said structures, utilities, pipelines etc. are not disturbed or damaged and shall indemnify and keep indemnified to the Owner from and against any destruction thereof or damages thereto.

28. Fire and Safety Norms

- Proper supervision & safety and housekeeping must be ensured by the contractor daily during execution. Contractor and their employees and agents are required to abide by the safety and security regulations of NRL from time to time.
- It is mandatory for the contractor to provide safety equipment and gadgets to all workers, supervisory and technical staff engaged in the execution of the work. The cost of the above equipment/gadgets is deemed to be included in the rates quoted by the contractor.
- In addition to the above, extra precautions like barricading tapes etc. shall have to be used as and when required.
- A "First Aid" box with all necessary medicines shall be kept at the site by the contractor.
- No material at any site shall be so stacked or placed as to cause danger or inconvenience to other contractors/persons/public.
- Noncompliance/violation of any safety norms shall attract penalty as per the NRL GCC.

29. Other Conditions of Contract

- Entry would be permitted to the contractor or his employees with valid photo gate passes only, which should be produced whenever asked for by any concerned officials/security staff.
- If any damage is caused to existing property (fixed or movable) during the execution of the job, the same must be rectified by the contractor at his own cost.
- Contractor must maintain necessary site record registers (Hindrance Register/ labour deployment Register/ Safety Register etc.) as directed by Engineer- in-charge.
- The contractor is the custodian of their materials and equipment and proper storage and safety of the materials will be the contractor's responsibility.
- No payment shall be made to the contractor for any damage caused by rain, floods or any other natural causes whatsoever during the execution of work. The damage caused to work shall have to be made good by the contractor at his own cost and no claim on this account shall be entertained.
- Contractor has to supply all the materials mentioned in the PO as per item text/tender specification. No additional charge shall be claimed for packing forwarding or logistic as well as other costs.
- After the award of the job, Contractor has to submit the Quality Assurance Plan (QAP).
- Site Engineer / Supervisor shall report to E.I.C or his/her representative every working day as per instruction and shall properly supervise for compliance to quality, specification, and safety requirements.
- Contract agreement, Contractor all risk Insurance policies etc. must be submitted prior to starting the job.
- Contractor has to provide the material test certificate for supplied cement, TMT rod, and structural steel items. The Contractor shall maintain 100% traceability for all pressure-retaining components, including but not limited to pipes, fittings (elbows, tees, reducers), and flanges provided.
- Final Documentation 3 sets along with one soft copy has to be ensured. The final documentation shall be bound in hard board folders. It shall consist of final drawings/documents consisting of technical data / Mechanical catalogue, design calculations, final certified as built drawings and data, manufacturing and test records, inspection reports, installation & maintenance instructions. Final as-built drawings shall be made available in softcopies in DWG/PDF format.

- **TPI** (Third party inspection) shall be carried out for supplied piping materials including pipe, pipe fittings, flanges, valves, gaskets, studs, nut-bolts and certificates to produce for the same. No additional charge shall be claimed by the contractor for the TPI.

  a. Lloyds Inspection Contractor Pvt. Ltd.
  b. Bureau Veritas Indi Services
  c. Det Norske Veritas
  d. TUV India Pvt Ltd
  e. Certification Engineers International Ltd
  f. Projects & Development India ltd.
  g. SGS India Ltd
  h. ITENG ENGINEERING (NOW Dr Amin Controllers Pvt Limited)
  i. CIPET
  j. International Certification Services Pvt. Ltd

  or any other inspection Contractor currently being employed by NRL with prior approval of NRL.

******Conditions not covered above shall be governed by GCC of NRL***

Annexure 21

TECHNICAL SPECIFICATIONS

NUMALIGARH REFINERY LIMITED

A GOVERNMENT OF INDIA UNDERTAKING

Technical Tender Document

for

Name of Work: Piping and other ancillary work in EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)

NUMALIGARH REFINERY LIMITED
(A Govt. of India Enterprise)

Name of Work: Piping and other ancillary work in EBMS blending system in Numaligarh Refinery Marketing Terminal (NRMT)

Technical Terms and Conditions of Contract:

1.01 Execution of SOR items with necessary resources will be under the scope of the contractor.

1.02 Contractor must mobilize adequate manpower & resources as per job requirement and complete the job within the stipulated period.

1.03 Party may have to mobilize any resource on a crash basis in odd hours including Holidays / off days and continue the job on round the clock basis if feel required by the EIC.

1.04 The contractor must arrange his own facilities for the transportation of his workmen/resources to the work area on all occasions.

1.05 Work in progress and completed work will be offered for inspection to NRL or any agency engaged by NRL as per specific work instructions of EIC.

1.06 The work shall be executed as per ASME/EIL/IS specific codes/standards and guidelines per general engineering practices and work instructions.

1.07 The contractor must mobilize all tools & tackles, equipment, machinery, accessories, and measuring instruments as per job requirements and complete the job within the stipulated period. Indicative lists of tools & tackles, machinery and measuring instruments, etc. required for this job are furnished in this tender document below. The lists are indicative only and thus not signify sufficiency.

1.08 The following activities will be attributable for the completion of any work as and where applicable and without any additional cost to the owner.

a) Cleaning of the area during and after completion of work.
b) Return of excess material and/or scrap to store or scrap yard/owners' storage point.

1.09 In case of materials under the custody of the contractor, though the property of the NRL will remain under the responsibility of the contractor, the contractor will be responsible to preserve them in good working condition as required by E-I-C and to the satisfaction of the owner till such time that the same is erected, tested, handed over and taken over by owner after the job is completed in all respects. For any loss or damage to materials while in the contractor's custody, the contractor shall replace/repair at his own cost. Otherwise, recoveries will be made from the contractor's bill.

1.10 Estimated quantity is tentative only and no guarantee can be given for execution level.

1.11 The welders will have to give a welding test under the NRL Inspection Department, or any agency engaged by NRL before the commencement of the job if required by the EIC.

1.12 All consumables, like industrial gases, welding electrodes & fillers, grinding wheels, cutting wheels, emery paper, DP test kit, consumables, fuel for DG set, temperature chalk, wrapping coating materials, grouting cement, etc are to be arranged by the contractor.

1.13 The contractor has to work parallel to the other contractors and cooperate with other contractors.

1.14 Work has to be executed in any location, height, position, day and time.

1.15 In case any defect arising out of reason attributable to poor workmanship the same has to be attended to and rectified by the contractor at no extra charge.

1.16 If required, gasket cutting to specific sizes from sheet gasket is to be done by the contractor without any extra cost.

1.17 Mobilization and execution of radiography, other NDTs shall be in contractor's scope and Interpretation of NDTs shall be done by NRL/TPIA or any NRL authorized third party authority. All the consumables required for NDT will also be in the scope of the contractor.

1.18 All required area preparation like providing barricade, fireproof enclosure, covering nearby equipment's, OWS points, drains; water spraying, de-watering etc. shall be in the scope of the contractor.

1.19 Contractor shall submit all relevant records, material balance statement, data sheet, hydrotest report with loop drawings, joint register with visual inspection record, as built drawings i.e. isometric drawings with clear marking of all joints & critical dimensions and P&ID etc. within 3 months after job completion.

1.20 Drawings accompanying the Tender document are for tendering purposes only. Based on site condition and pipe route the successful bidder has to prepare details drawings (isometric, pipe support & P&ID, etc.) and get approval from NRL prior to execution of the job.

1.21 Contractors shall observe all national laws, ordinances, rules and regulations, relevant drawings, procedures, and other requirements pertaining to the work in addition to ASME/EIL/IS Codes & Standards specified in the respective specification and shall be responsible for extra costs arising from violations of the same.

1.22 The presence or absence of an NRL representative does not relieve the Contractor's responsibility for quality control in all phases of the work. In the event that any of the work being done by the Contractor is found by NRL's representatives to be unsatisfactory or not in accordance with the drawings, procedures, and specifications, the Contractor shall, upon verbal notice of such discrepancy or deficiency, take immediate steps to revise the work in a manner to conform those relevant drawings, procedures, and specifications.

1.23 It shall be entirely the Contractor's responsibility to provide, operate and maintain all necessary equipment, scaffoldings and safety gadgets, cranes and other lifting tackles, tools, and appliances to perform the work in a workman-like and efficient manner and complete all the jobs as per time schedules. The Contractor also be responsible for safe custody of the dismantled materials, if any, from the site till it is delivered at the NRL's disposal yard (as shown by EIC) at their own cost.

1.24 During execution, the actual job may differ from the supplied isometric drawings depending on site conditions. In that case, the contractor has to execute the job as per the decision/instruction of E-I-C.

1.25 Site Engineer / Supervisors should report Engineer-In-charge every day as per instruction and shall strictly execute the job under his supervision in compliance with the entire technical specification & safety requirement.

2. Technical Specification:

2.01 The minimum criteria for the design, fabrication and erection of pipeline and structural supported shall be as per ASME/EIL/IS specific codes/standards and meet all the requirements mentioned in OISD 108/130. All piping specifications must be as per EIL A10A Rating Class#150 standards.

2.02 Contractor has to prepare the isometric drawing for piping and get approval for the same from NRL.

2.03 Contractor has to prepare pipe support drawing and get approval for the same from NRL.

2.04 Contractor has to carry out the job as per the approved drawing.

2.05 Contractor has to fabricate and install reinforcement pad in piping as per applicable standard and the cost of the same is deemed to be included in the rates quoted by the contractor.

2.06 Contractor has to carry out all welding works exclusively using the GTAW & SMAW process.

2.07 Contractor has to submit welding procedure specifications (WPS) and get approval of the same from NRL prior to starting the job.

2.08 Contractor has to offer NRL for stage-wise inspection as follows:

(i) Inspection during fabrication
- NRL approved Welding procedure to follow.
- Visual inspection: Edge preparation, fit-up
- Dye Penetration Test

(ii) Test inspection
- Hydrostatic test
- Radiography test (10% of weld joints)

(iii) Post-welding cleanliness inspection
- Ensure satisfactory chemical cleaning.
- No burrs or sharp edges or weld tints allowed.
- All piping internal to flush properly after completion of job.

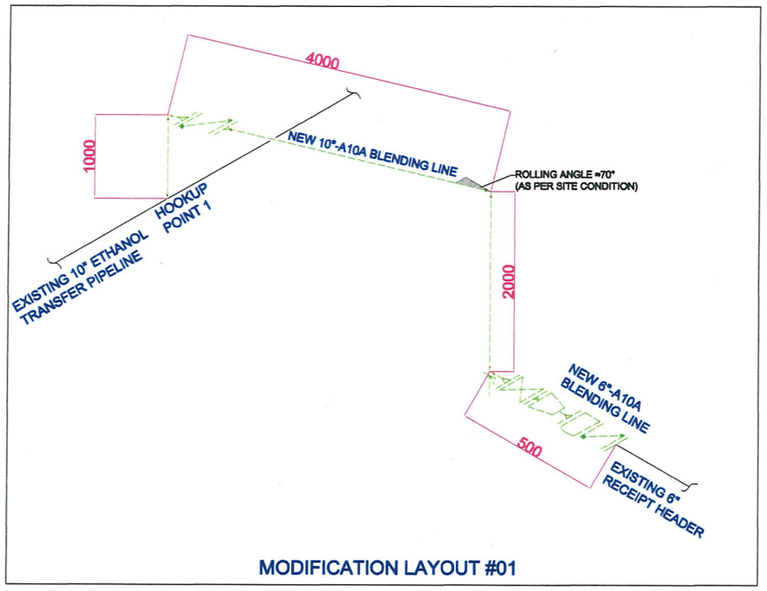
2.09 Tools, Tackles, Equipment & Machinery as and when required.

2.09.1 Welding M/c
2.09.2 Grinding M/C
2.09.3 Chain pulley
2.09.4 Toolbox
2.09.5 Hydro testing pump of required capacity
2.09.6 Gas cutting set
2.09.7 Industrial tripod crane
2.09.8 Electrical construction panel

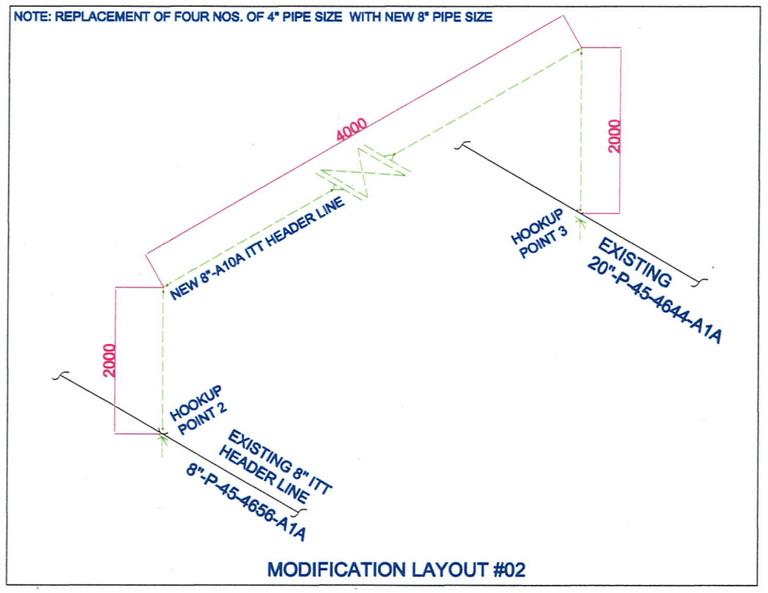
2.10 Types of measuring instruments required:

2.10.1 Master Spirit Level Gauge

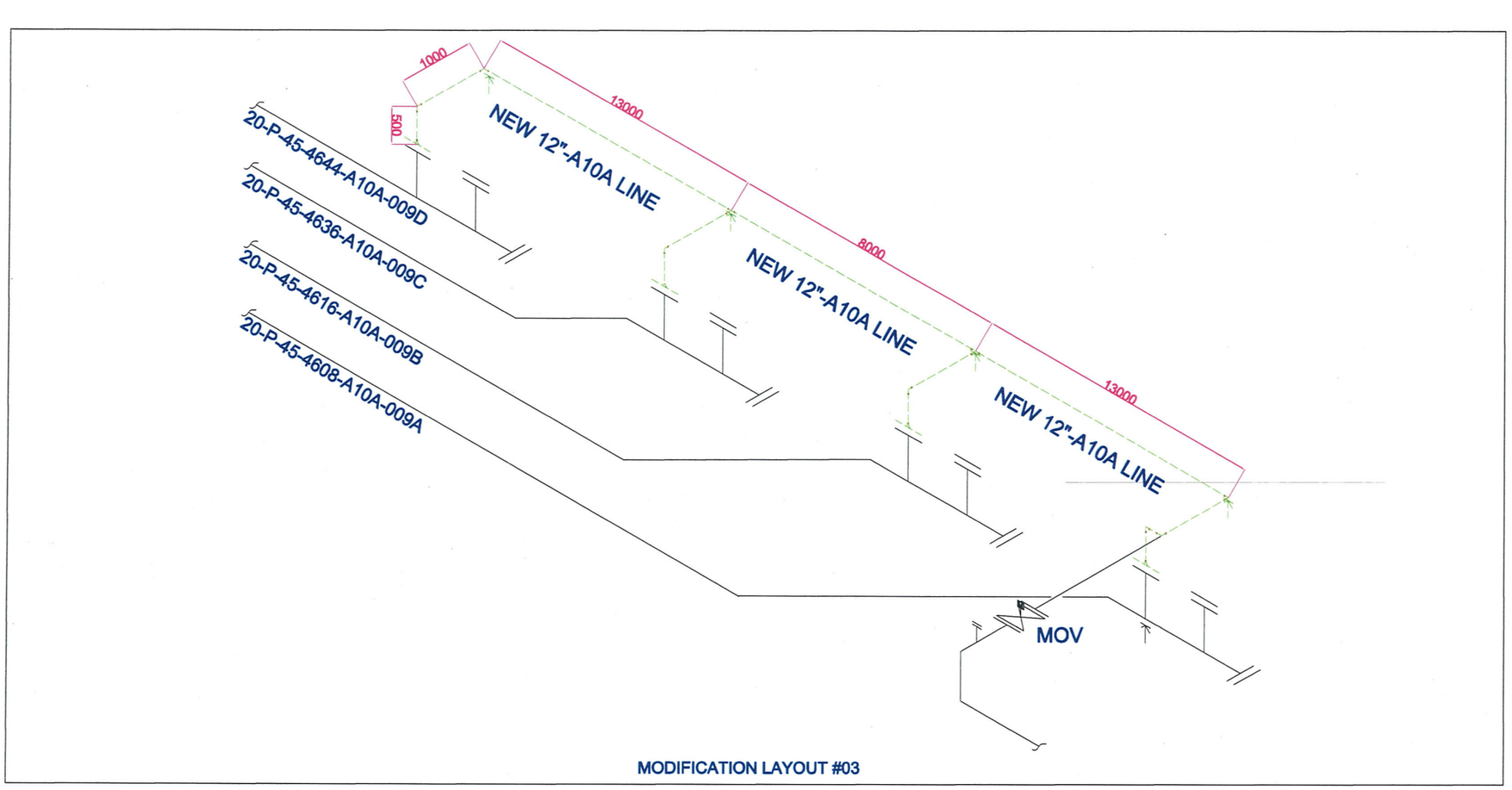
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MODIFICATION LAYOUT #01



MODIFICATION LAYOUT #02



MODIFICATION LAYOUT #03

B.O.Q FOR PIPES AND FITTINGS	
Sl.No.	Material Description
1	AS PER DRAWING

REFERENCEDOCUMENTS

DOCNO	DOCTITLE	REV.

LEGEND:

GATE VALVE	PIPE SUPPORT
REDUCER	CHECK VALVE
NEW A10A PIPE	STRAINER

TECHNICAL DETAILS

1. APPLICATION	---	EBMS STREAM PIPELINE
2. TYPE	---	EIL A10A STANDARD CLASS RATING #150
3. MODEL NO	---	

GENERALNOTES:

1. ALL DIMENSIONS ARE IN MM.
2. PIPE MANUFACTURING STANDARD = API 5L GR.B
3. BENDS AND REDUCER AS PER MANUFACTURING STANDARD = ASTM A234 GR.WPB
4. CONSTRUCTION : WELDED (AT SITE)
5. ALL WELDS ARE TO BE CONTINUOUS WELD JOINTS
6. PIPES TO BE CUT AS PER ACTUAL SITE LAYOUT
7. ALL PIPES ARE SUBJECTED TO 6-7 KG/CM2
8. ALL PIPES ARE TO BE LAID ON EIL STANDARD PIPE SUPPORTS
9. INTERNAL / EXTERNAL PAINTING AS PER SPECIFICATIONS
10. GASKETS SHALL BE GIVEN AS NECESSARY

मेदिनी कुमार बरा (अभियांत्रिकी एवं अनुमान)
वरिष्ठ प्रबंधक (अभियांत्रिकी एवं अनुमान)
Senior Manager (Engineering & Estimation)
Medini Kumar Bara
(For Tender purpose only)
21/04/2026

Rev.	Date		Prepared	Checked	Approved	Owner Approved

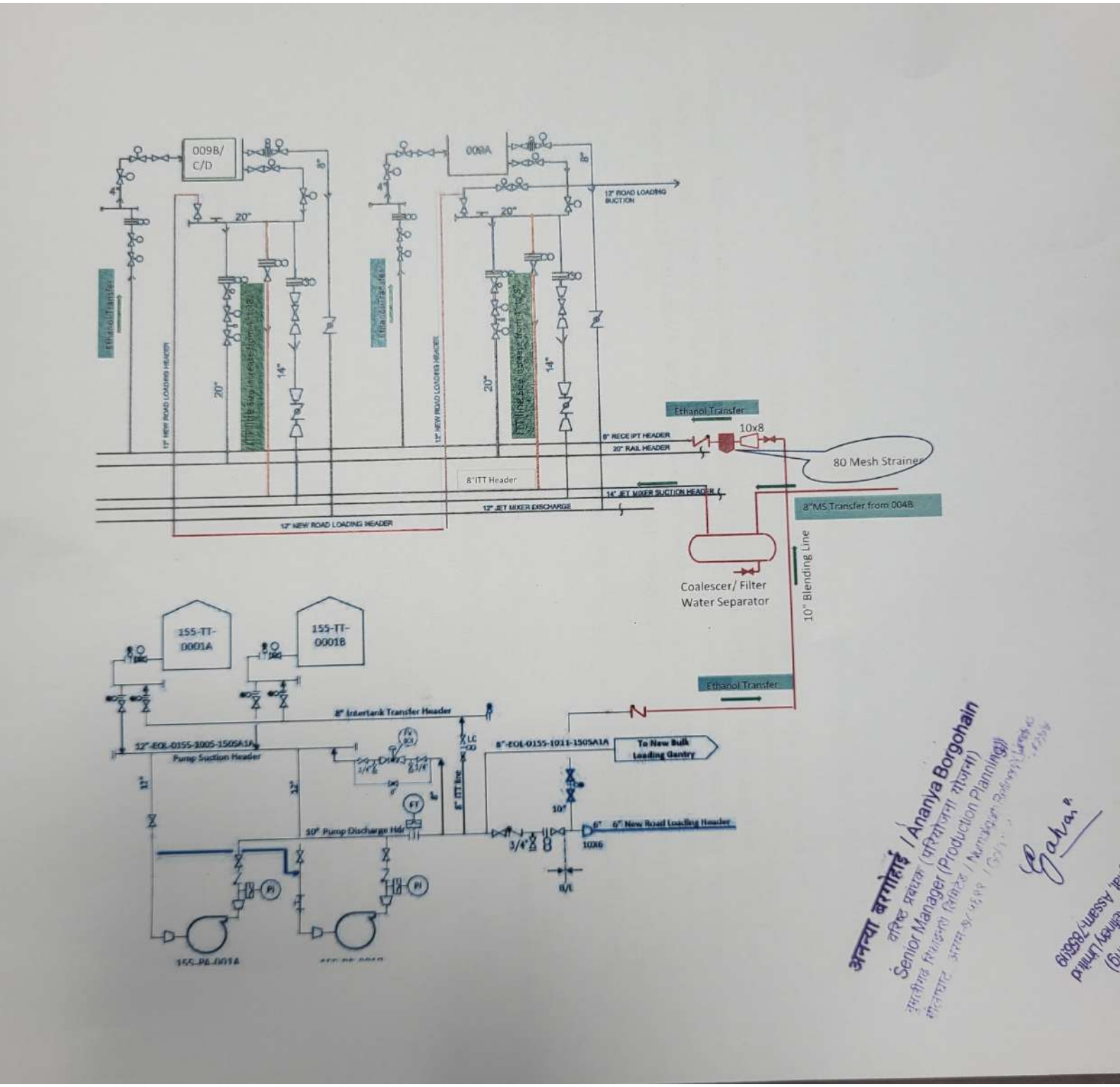
NUMALIGARH REFINERY LIMITED

PROJECT: EBMS Stream pipeline modification. Scale: Not to Scale

DRAWINGTITLE: Schematic layout for EBMS stream pipeline Drg.Size: A3

Originator/ Contractor	Project Code	Disc	Disc Code	Sequence Number	Rev.	Sheet
	NRL-EBMS	MECH	M	01	01	01 of 01

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009B/
C/D
009A
20"
8"
12" ROAD LOADING
SUCTION
Ethanol Transfer
12" NEW ROAD LOADING HEADER
14"
12" NEW ROAD LOADING HEADER
8"ITT Header
8" RECEIPT HEADER
20" RAIL HEADER
14" JET MIXER SUCTION HEADER
12" JET MIXER DISCHARGE
12" NEW ROAD LOADING HEADER
Ethanol Transfer
10x8
80 Mesh Strainer
8"MS Transfer from 004B
Coalescer/ Filter
Water Separator
10" Blending Line
155-TT-
0001A
155-TT-
0001B
8" Intertank Transfer Header
12"-EOL-0155-1005-150SA1A
Pump Suction Header
8"-EOL-0155-1011-150SA1A
To New Bulk
Loading Gantry
10" Pump Discharge Hdr
6" New Road Loading Header
10X6
FT
PI
155-PA-001A